

Trinity College Dublin
Coláiste na Tríonóide, Baile Átha Cliath
The University of Dublin

What is the Internet doing to me?
(Security and privacy for people in a connected world)

Eoin O'Dell @cearta

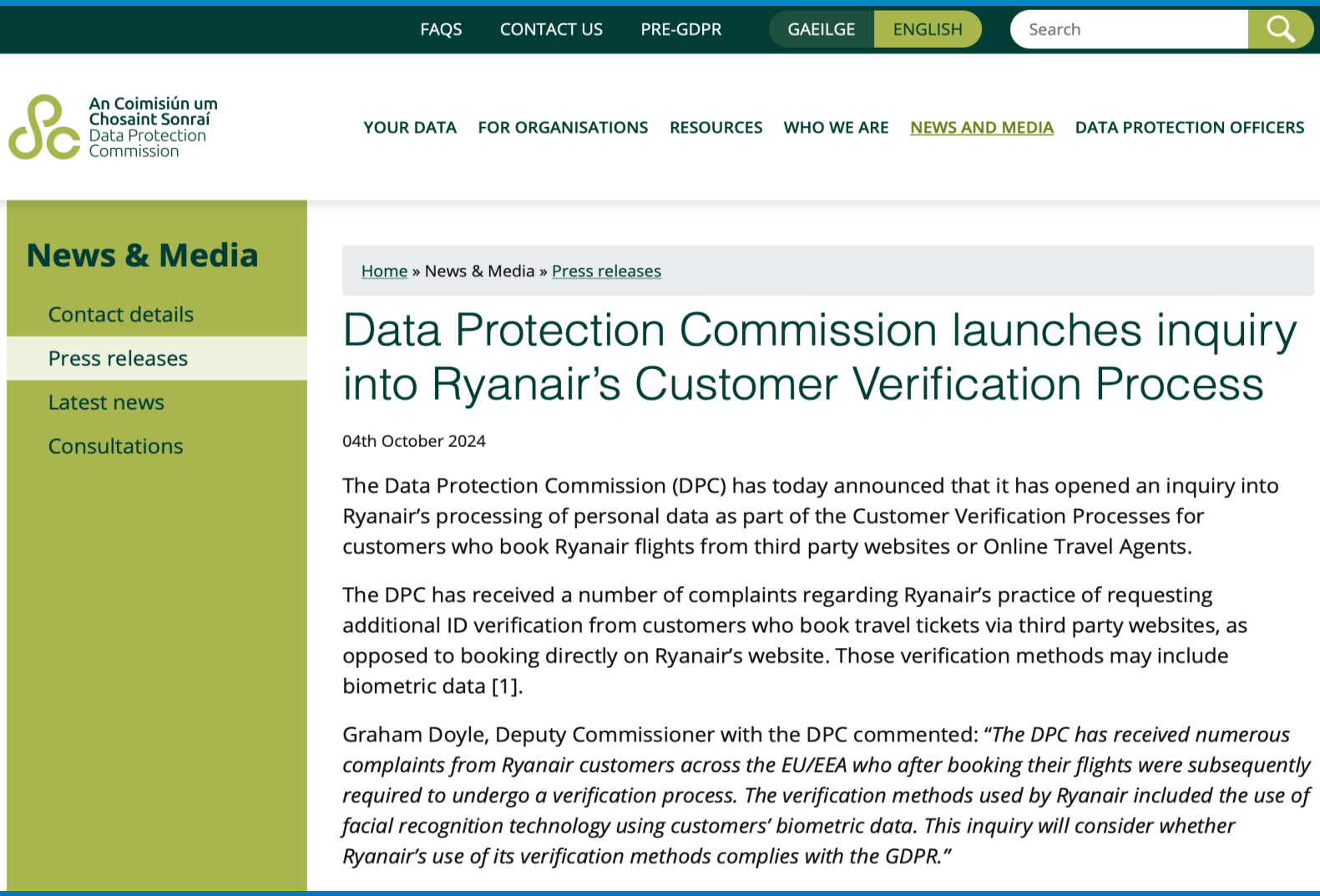
Data and Privacy



What's in Data Protection news?



What's in Data Protection news?



General Data Protection Regulation (Regulation (EU) 2016/679) (GDPR)



Some key concepts and principles

Key Concepts

- “Personal Data”
- “Processing”

Key Principles

- Principles of Processing
- Lawfulness of Processing



Personal data

Article 4(1) GDPR

'personal data' means any information relating to an **identified or identifiable** natural person ('data subject'); an identifiable natural person is one who can be identified, **directly or indirectly**, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that **natural person**;

Case C-434/16 *Nowak*



Handwriting leading to identification

distance himself from Turpin's affairs, and so the letter was moved to the post office at Saffron Walden where James Smith, who had taught his younger schoolmate Turpin how to write while they were at school, recognised the handwriting. He alerted JP Thomas Stubbing, who paid the postage and opened the letter. Smith travelled to York Castle and on 23 February identified Palmer as Turpin.[67]

" Dear Brother, York, Feb. 6, 1739.

I AM ſorry to acquaint you that I am now under confinement in York Caſtle, for horſe-ſtealing. If I could procure an evidence from London to give me a character, that would go a great way towards my being acquitted. I had not been long in this country before my being apprehended, ſo that it would paſs off the readier. For Heaven's ſake, dear brother, do not neglect me; you will know what I mean, when I ſay——

I am yours,

JOHN PALMER.



Processing of personal data

Article 4(2) GDPR

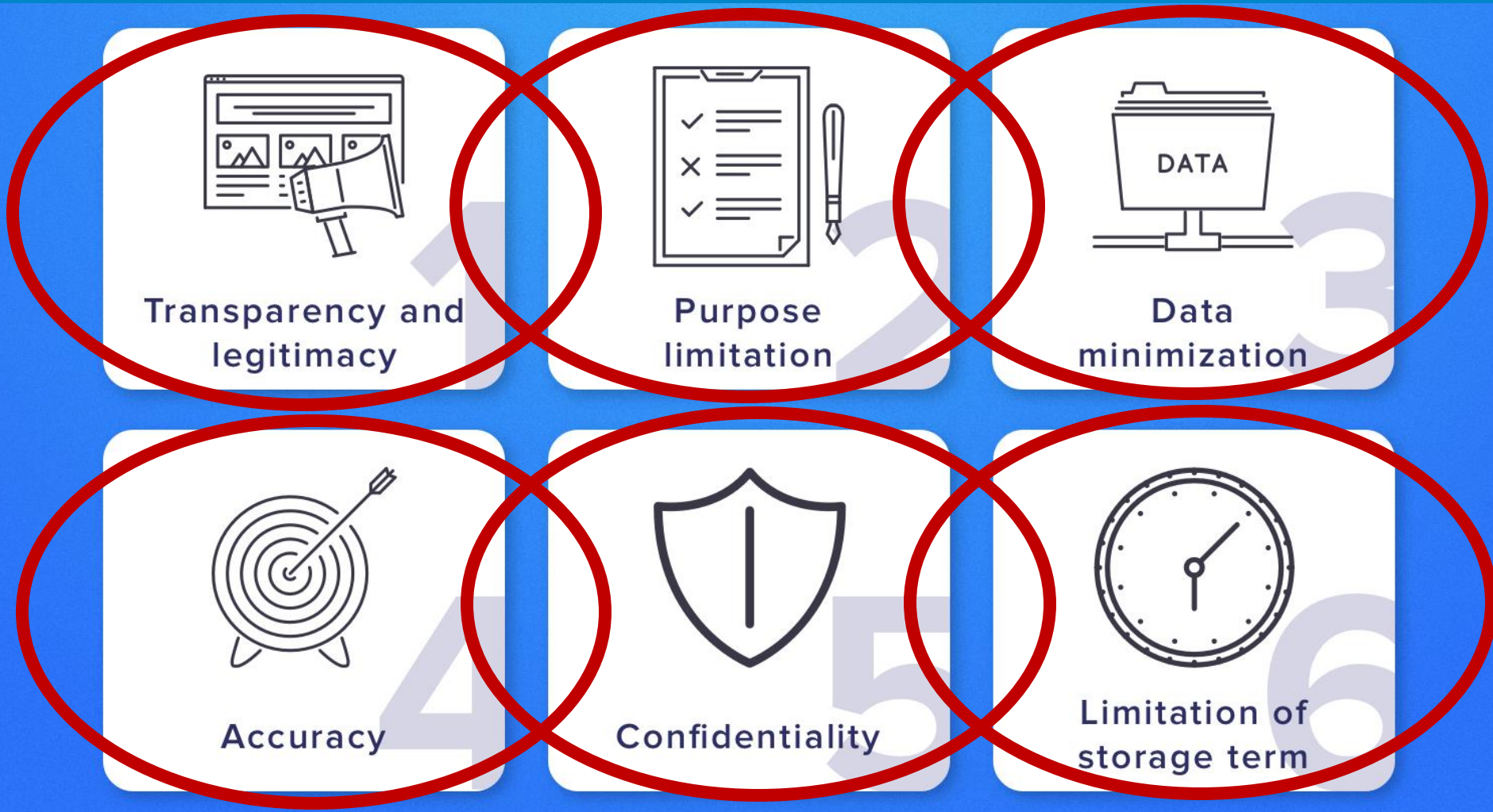
'processing' means ***any* operation** or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

Article 4(7)-(8) GDPR

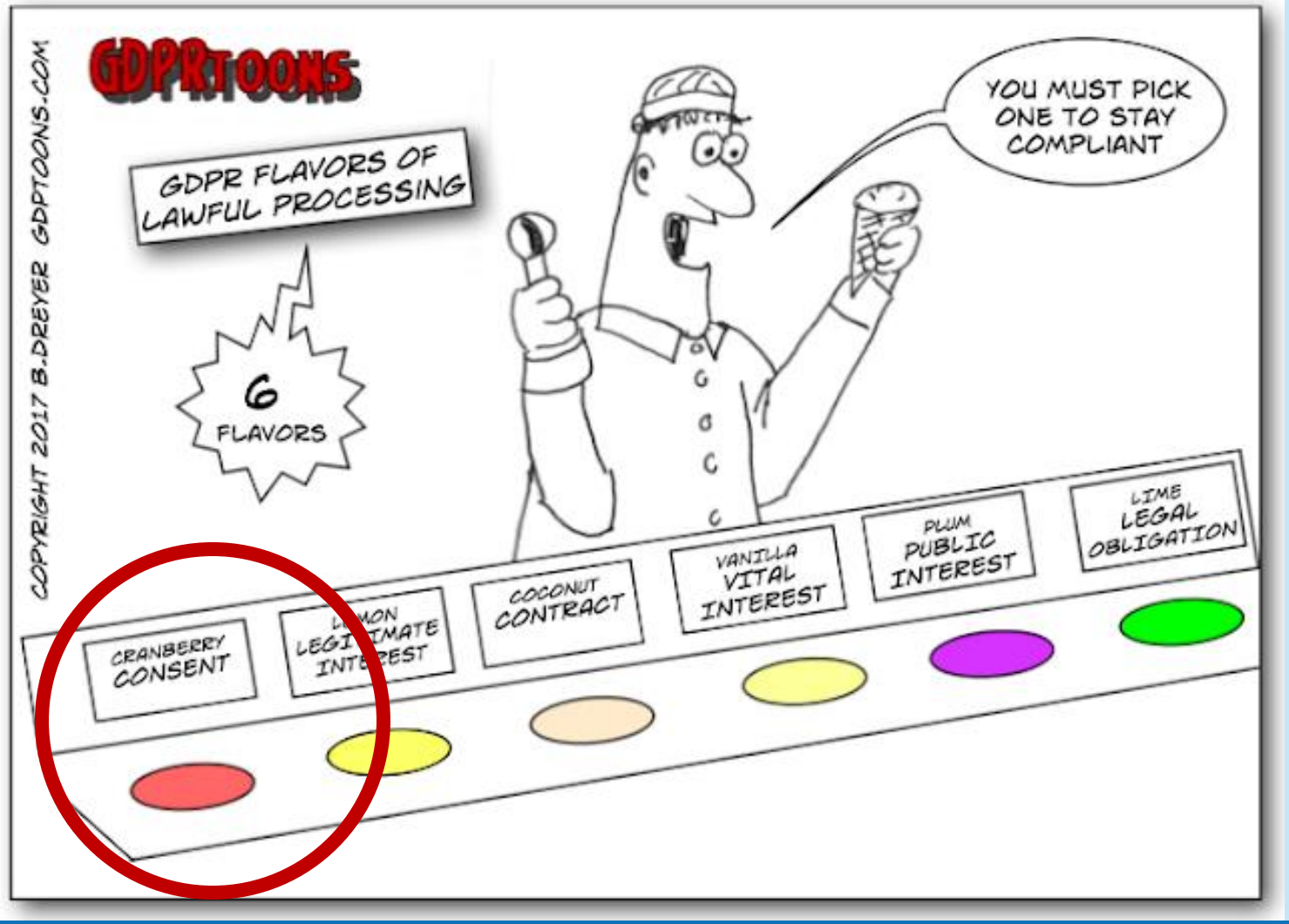
‘**controller**’ means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; …

‘**processor**’ means a natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller;

Art 5(1) GDPR - Principles



Article 6 GDPR – lawfulness of processing

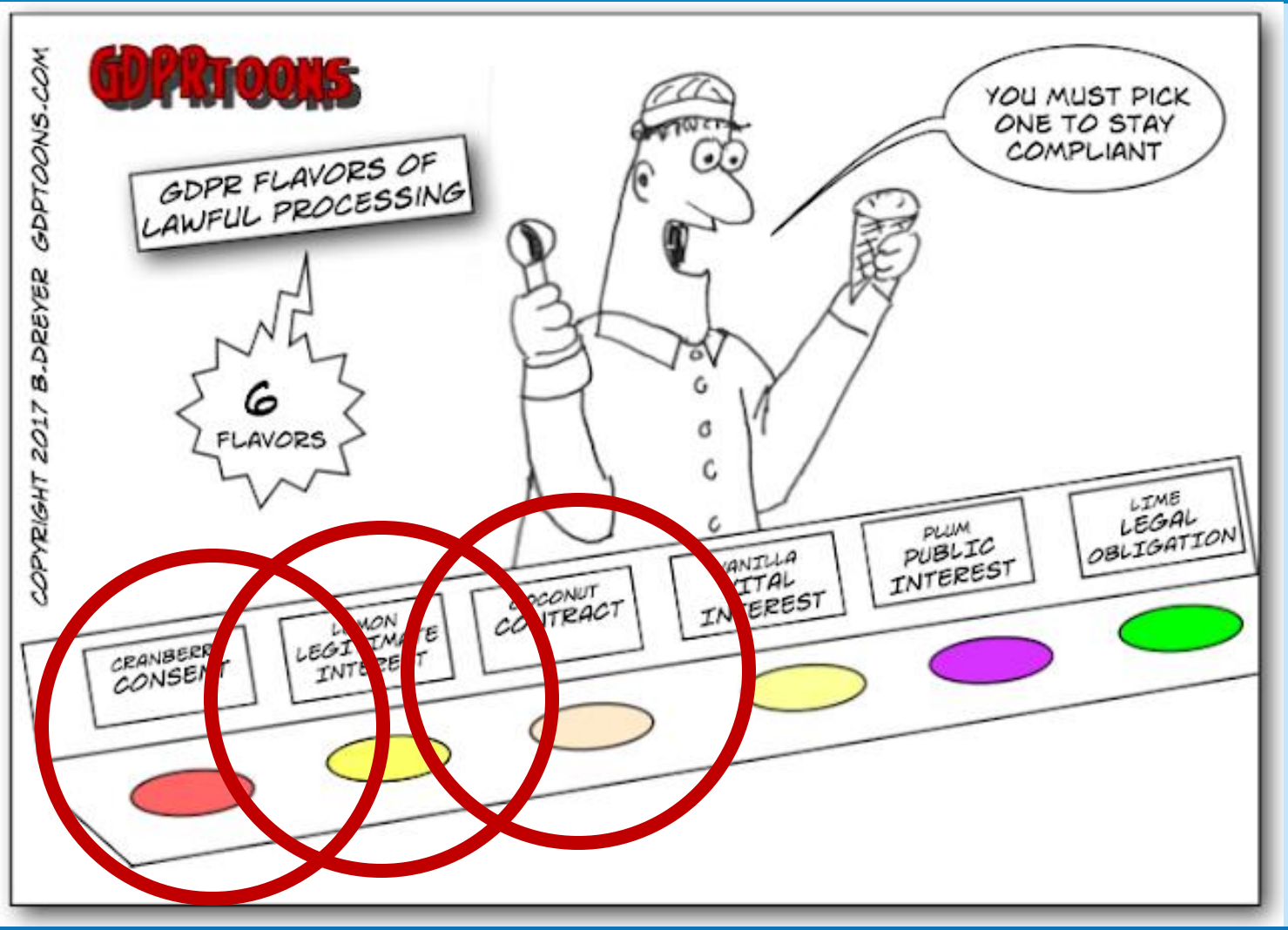


Cranberry
Consent [of data subject]

freely given, specific, informed & unambiguous

But Art 8 DAoC / kids

Article 6 GDPR – lawfulness of processing

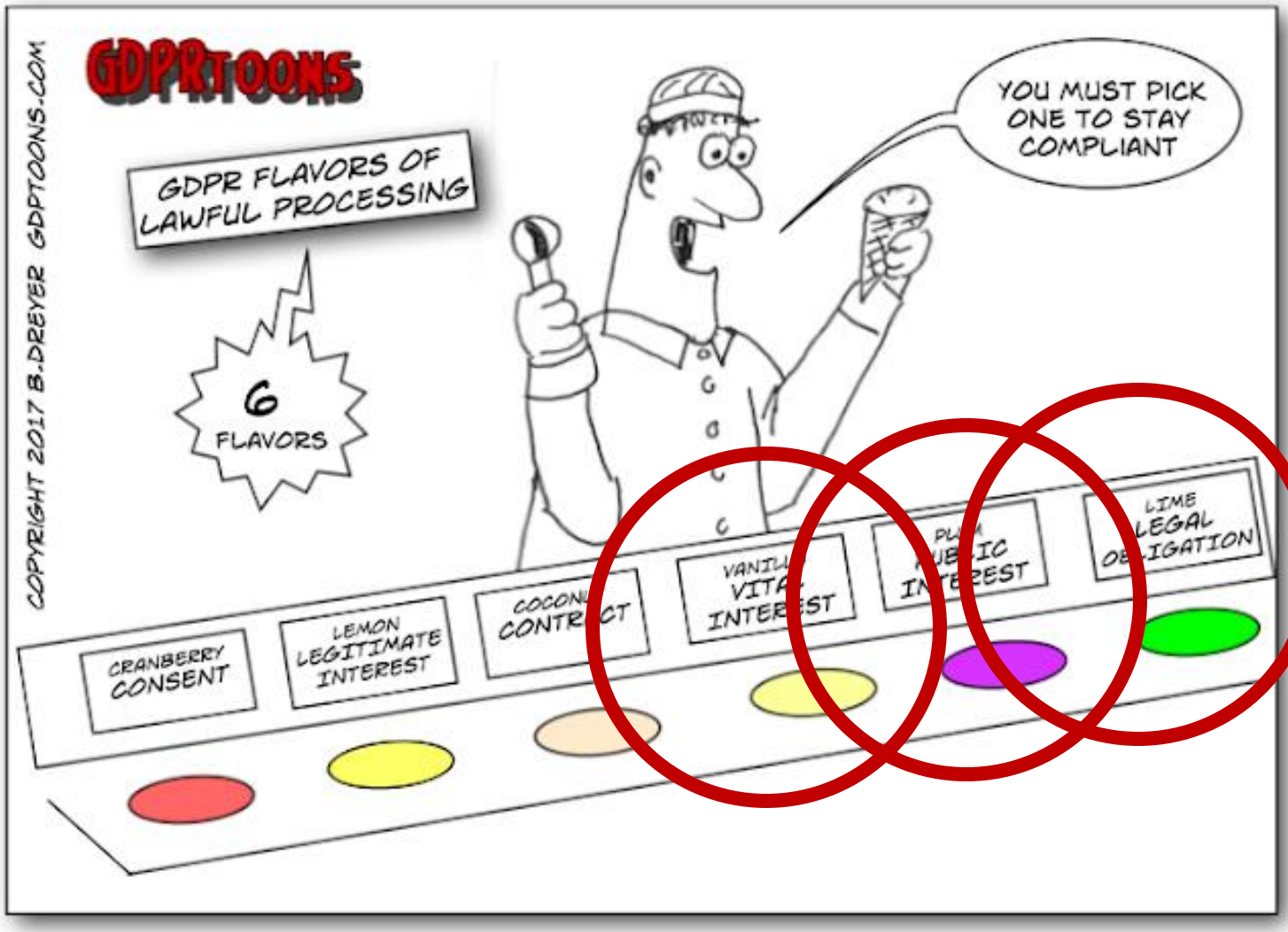


Cranberry
Consent [of data subject]

Lemon
Legitimate interest [of controller]

Coconut
Contract

Article 6 GDPR – lawfulness of processing

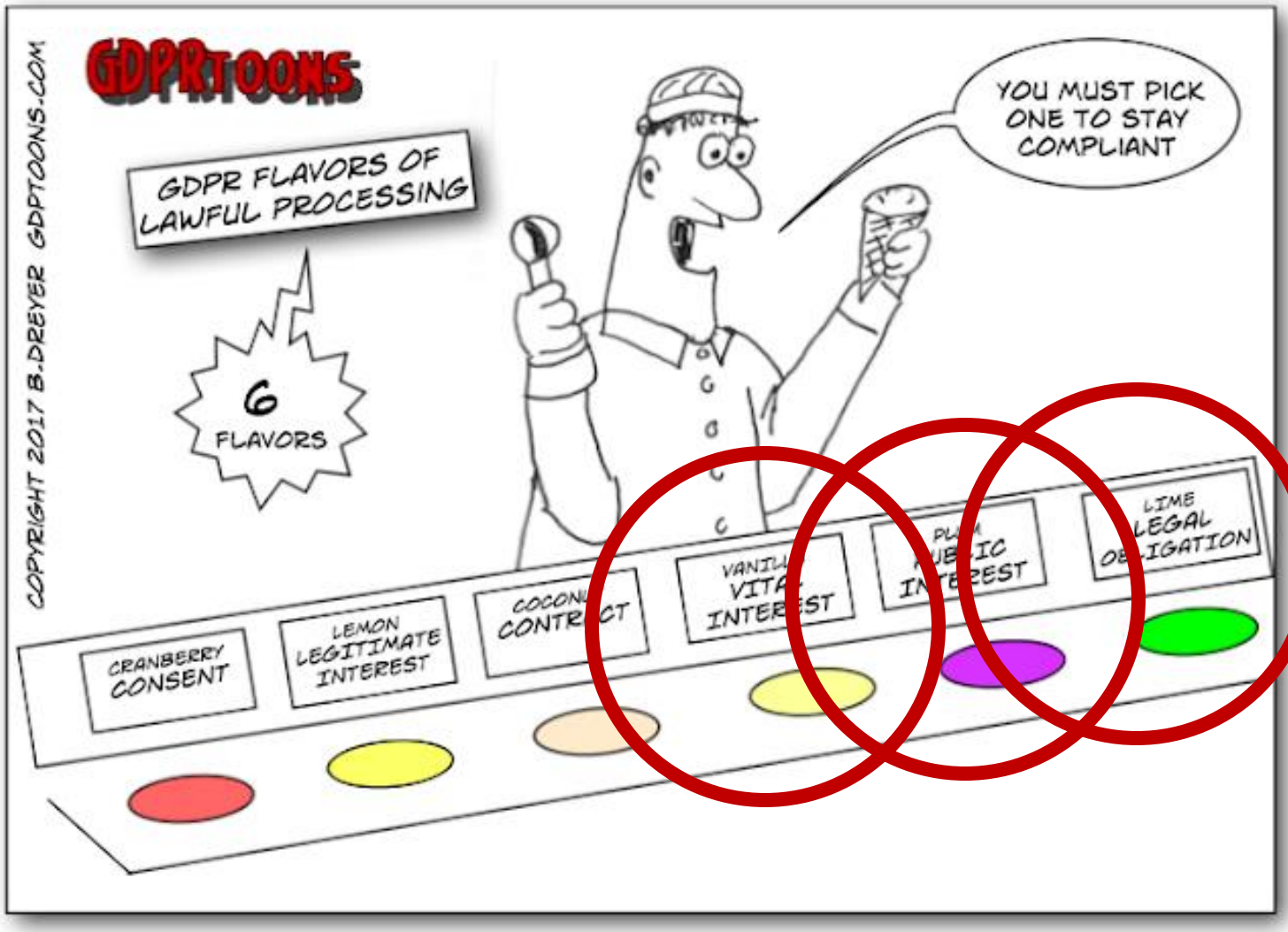


Vanilla
Vital interest [of data subject]

Plum
Public interest

Lime
Legal obligation [on controller]

Article 6 GDPR – lawfulness of processing

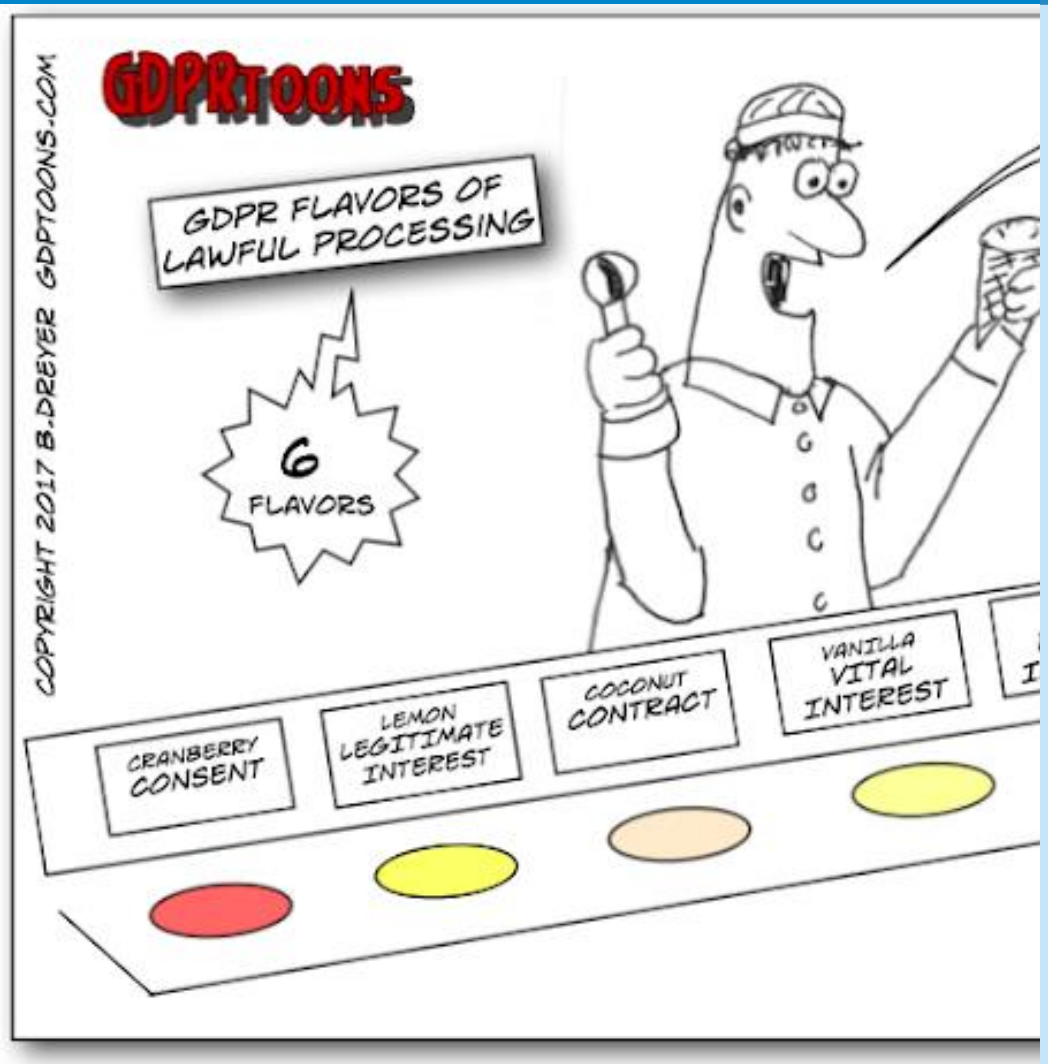


Vanilla
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Lime
Legal obligation [on controller]

Article 6 GDPR – lawfulness of processing



Cranberry
Consent [of data subject]

Vanilla
Vital interest [of data subject]

Lemon
Legitimate interest [of controller]

Plum
Public interest

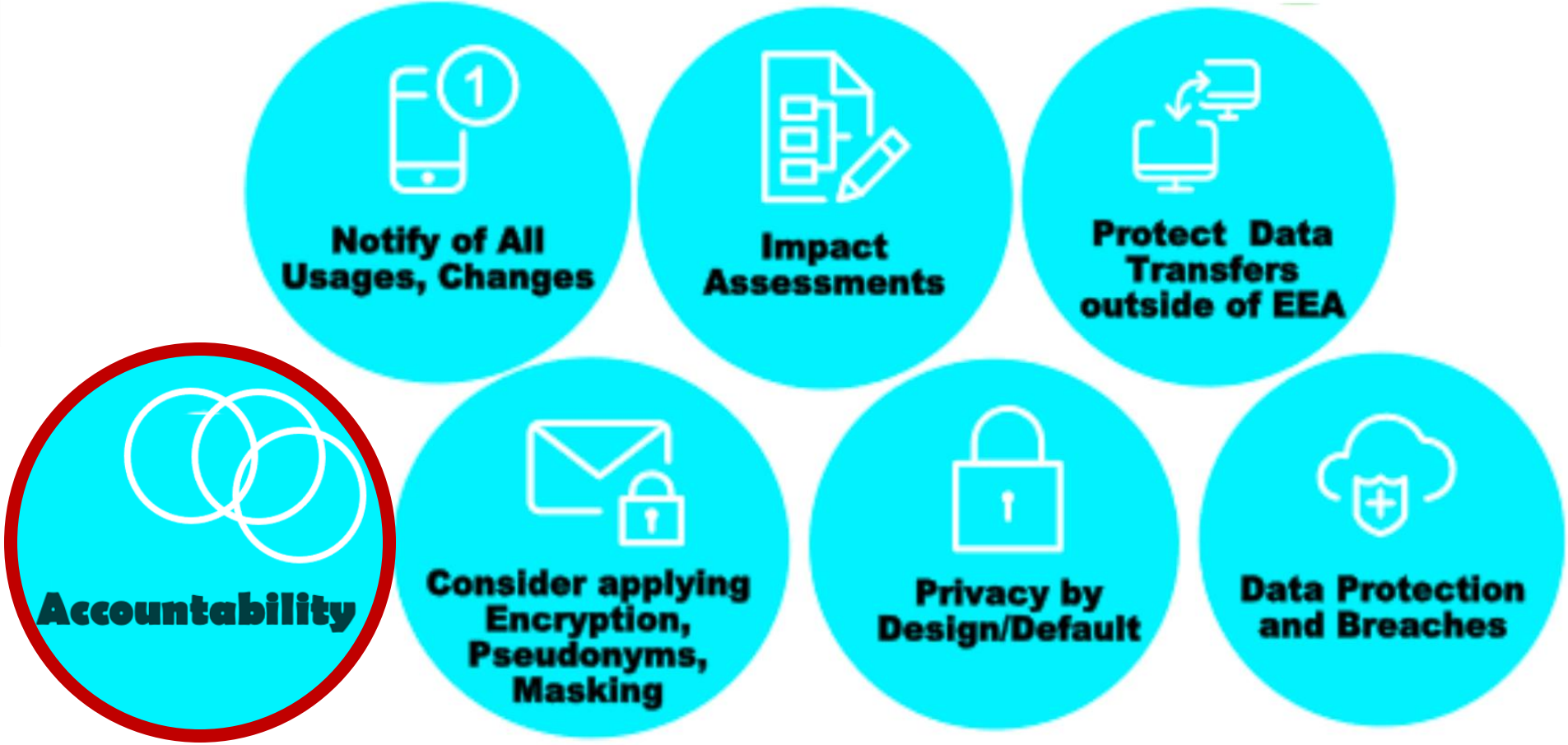
Coconut
Contract

Lime
Legal obligation [on controller]

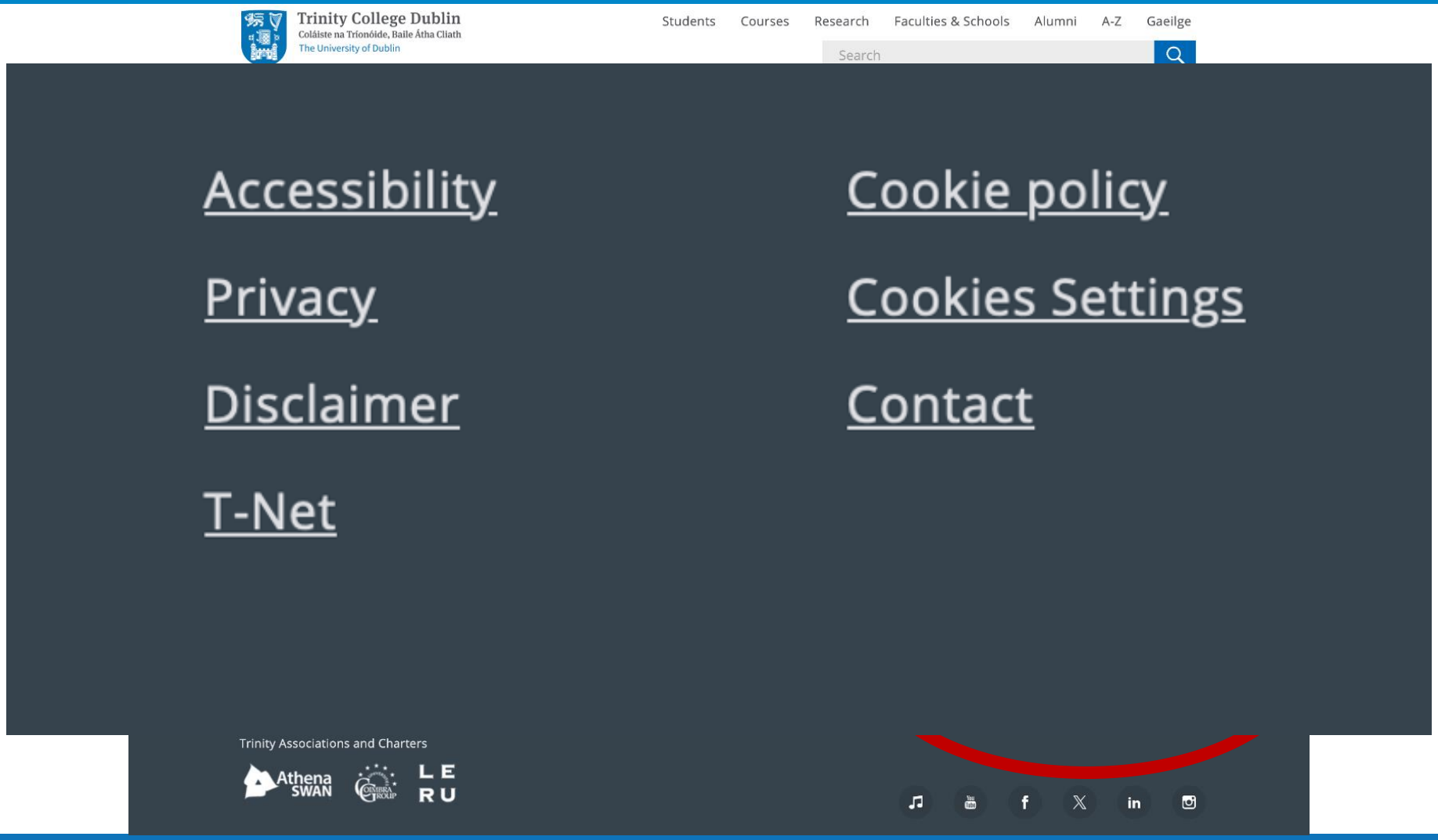
Art 9 GDPR – special categories



Obligations of Controllers

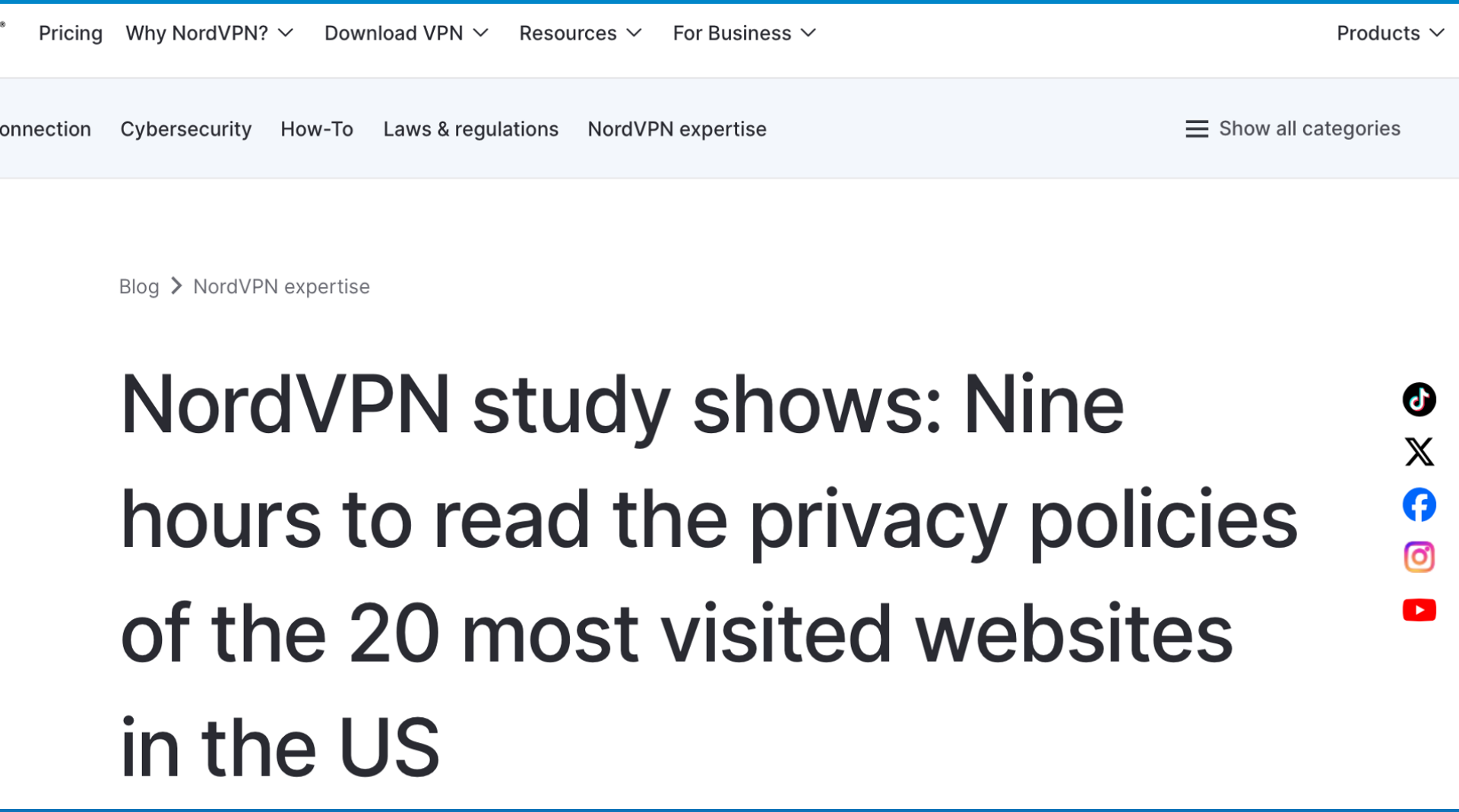


GDPR Data Subject Rights

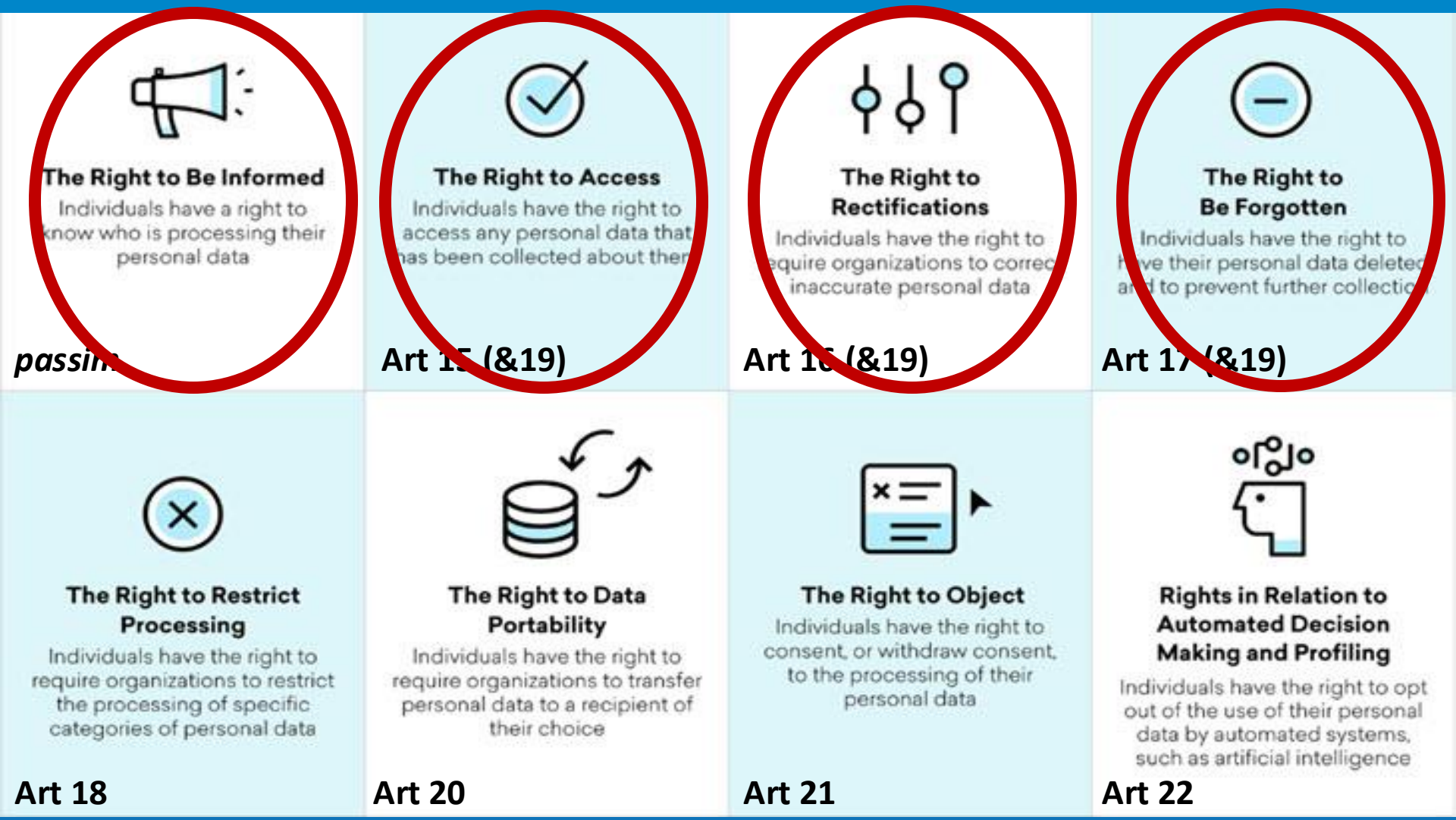


Trinity College Dublin, The University of Dublin; imagehttps://www.tcd.ie & https://www.flickr.com/photos/thousandshipz/3086181468

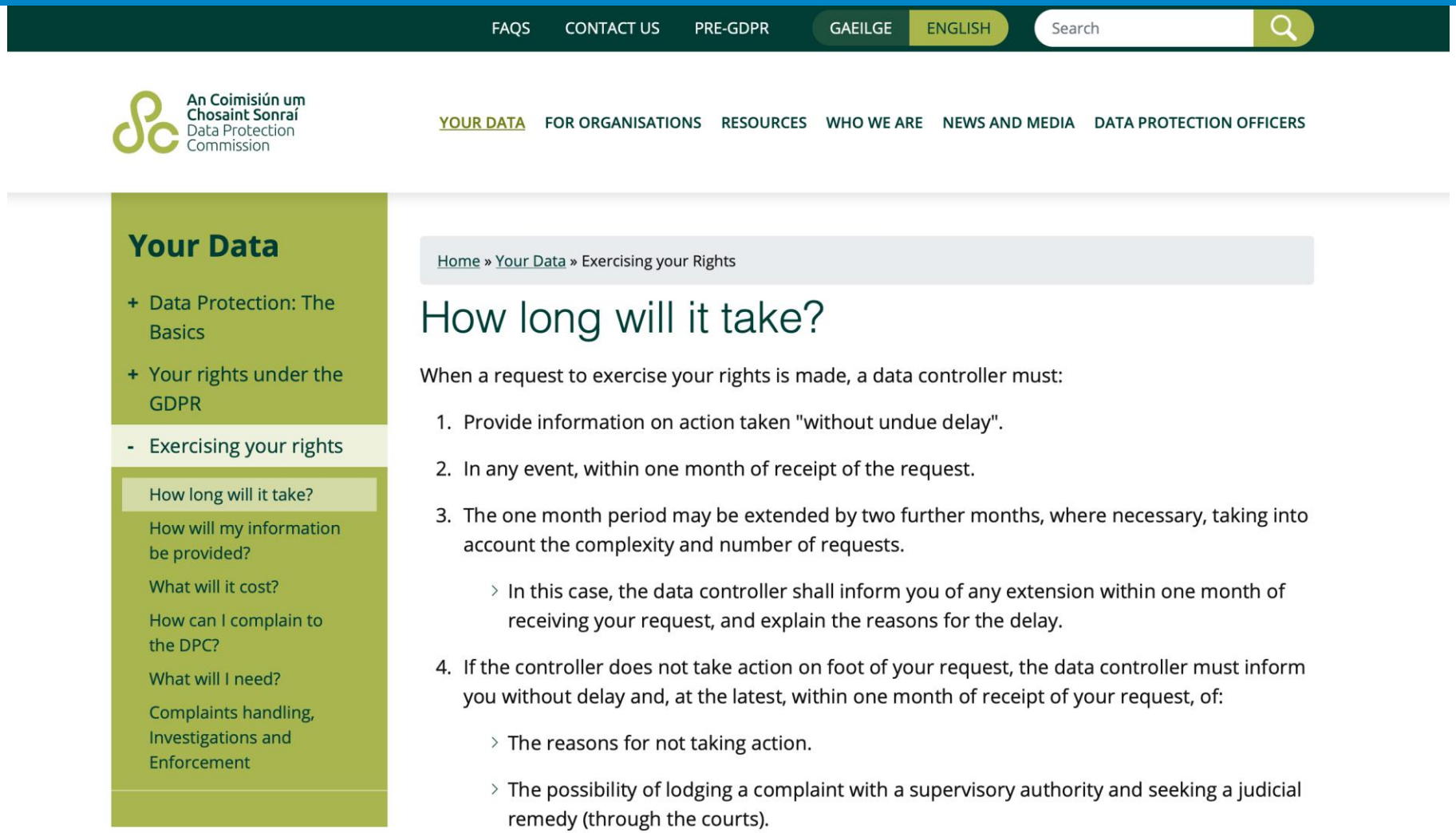
GDPR Data Subject Rights



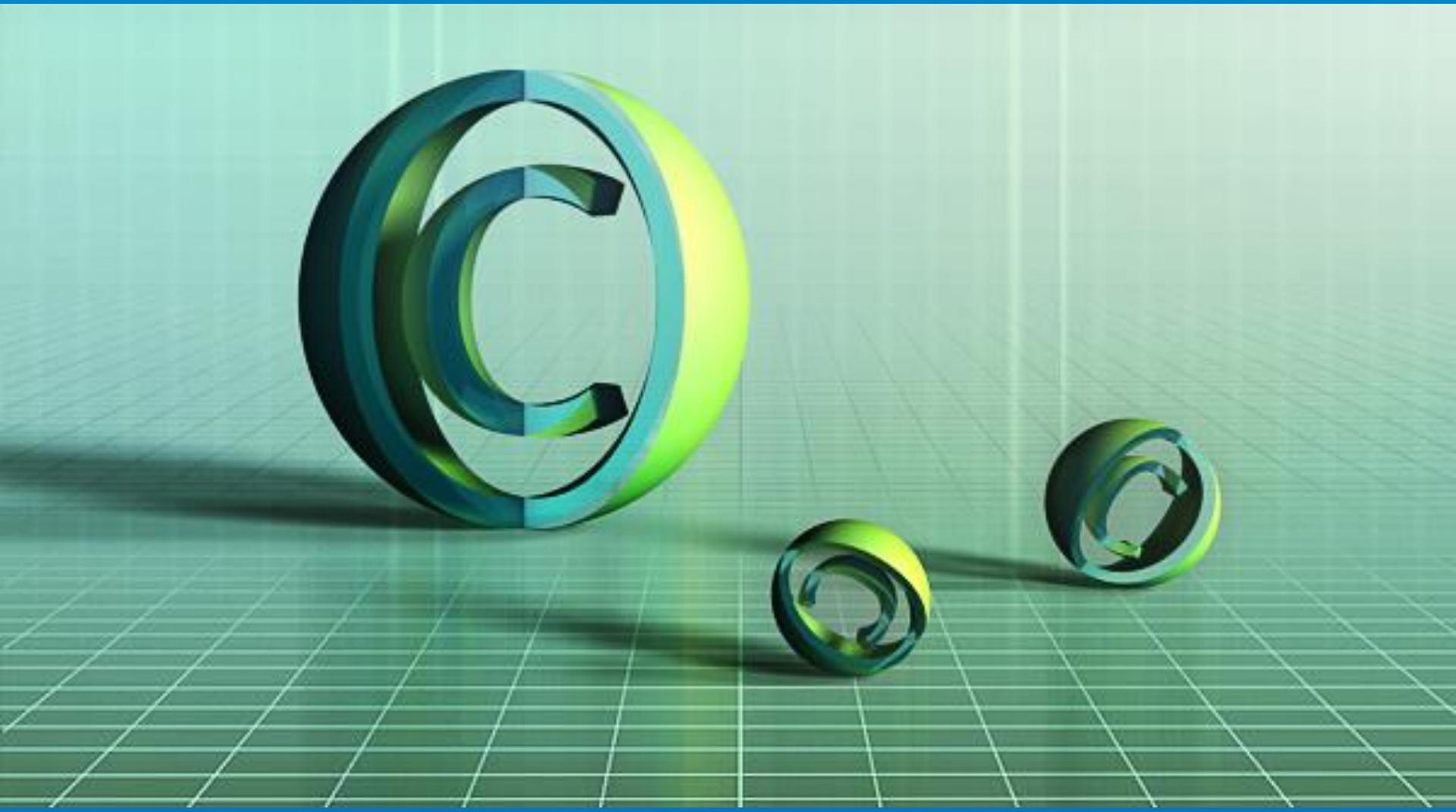
GDPR Data Subject Rights



DSAR & RtbF


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Data Protection Commission
YOUR DATA
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RESOURCES
WHO WE ARE
NEWS AND MEDIA
DATA PROTECTION OFFICERS
Your Data
+ Data Protection: The Basics
+ Your rights under the GDPR
- Exercising your rights
How long will it take?
How will my information be provided?
What will it cost?
How can I complain to the DPC?
What will I need?
Complaints handling, Investigations and Enforcement
Home » Your Data » Exercising your Rights
How long will it take?
When a request to exercise your rights is made, a data controller must:
1. Provide information on action taken "without undue delay".
2. In any event, within one month of receipt of the request.
3. The one month period may be extended by two further months, where necessary, taking into account the complexity and number of requests.
› In this case, the data controller shall inform you of any extension within one month of receiving your request, and explain the reasons for the delay.
4. If the controller does not take action on foot of your request, the data controller must inform you without delay and, at the latest, within one month of receipt of your request, of:
› The reasons for not taking action.
› The possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy (through the courts).

Copyright



Trinity College Dublin, The University of Dublin; image: https://www.flickr.com/photos/musestouch/8511965675

What's in Copyright news?



What's in Copyright news?

The New Zealand Herald

Boy named after Star Wars character denied passport due to copyright infringement

Issues arose when they attempted to get a passport for their youngest child. The boy was born on May 4, 2017, and because May 4 is colloquially known as Star Wars Day, the couple were inspired to name him after one of the characters.

Years later, however, the name Loki Skywalker Mowbray was problematic, the UK Home Office said.

What's in Copyright news?

BBC

Home News Sport Business Innovation Culture Arts Travel Earth Video Live

Trump loses Electric Avenue song legal fight

3 days ago

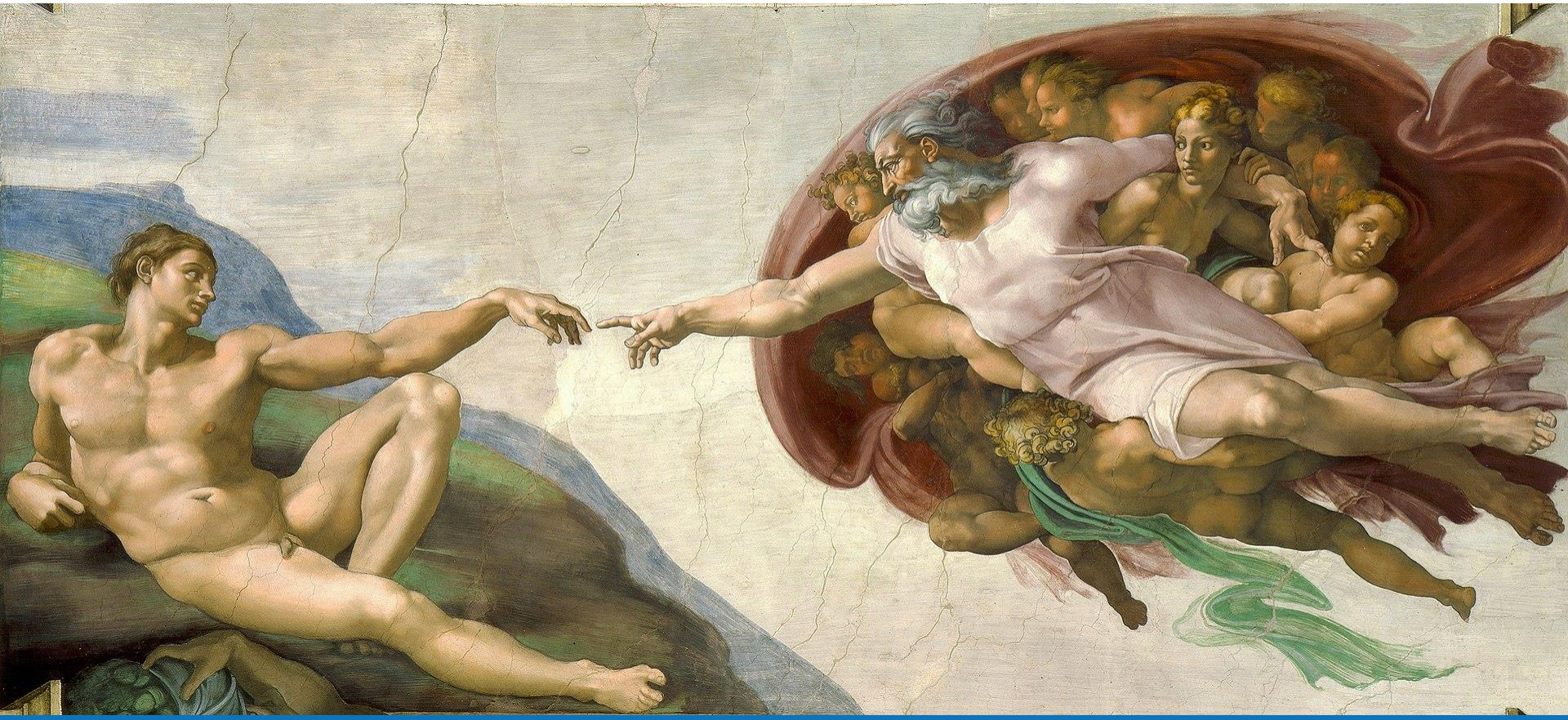
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Subsistence of copyright

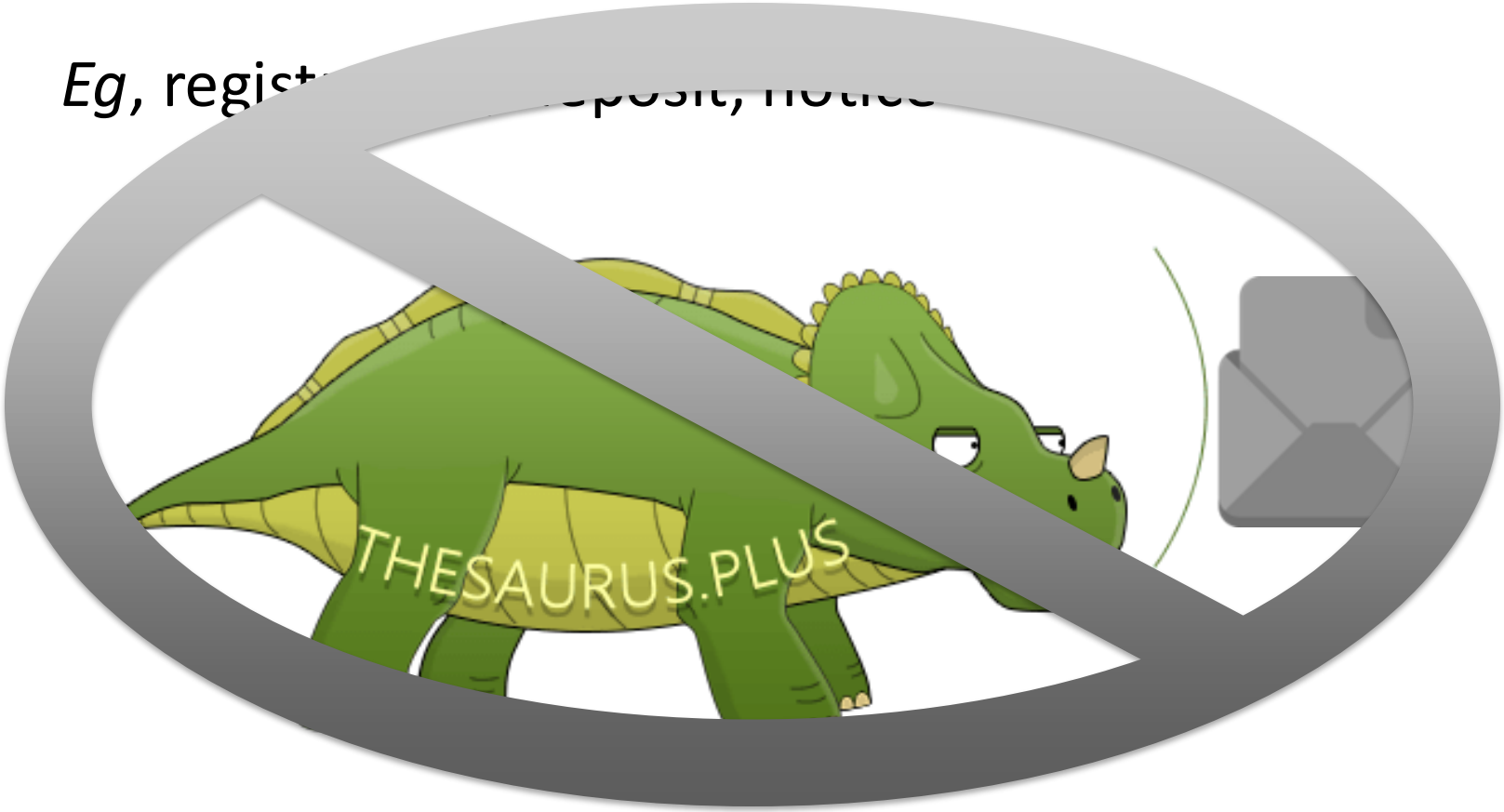
Copyright automatically subsists at the moment of creation



Formalities

"not subject to any formality"

Eg, regist[illegible]



Originality

Original to you



2014

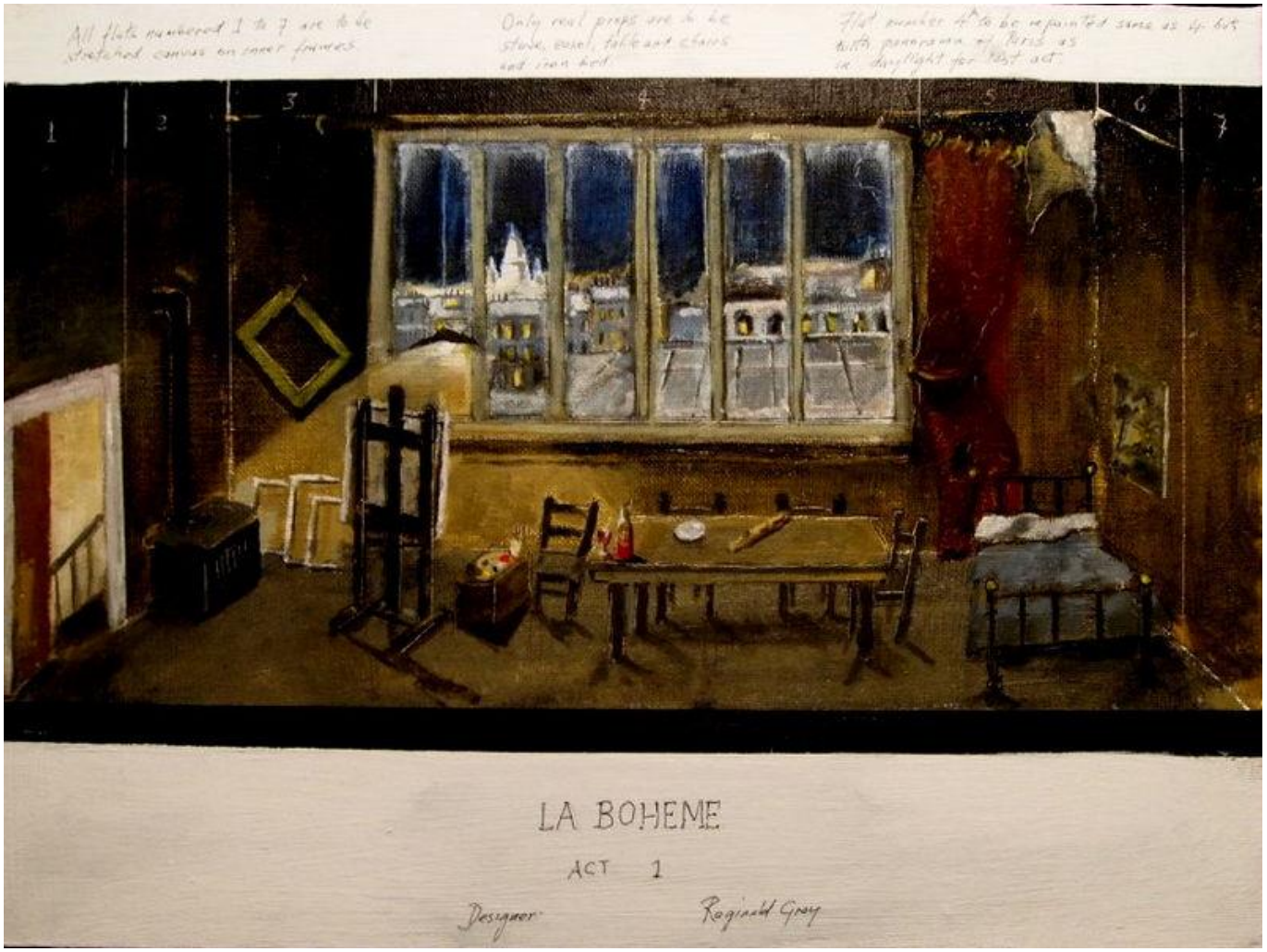

Ellen DeGeneres
@EllenDeGeneres
If only Bradley's arm was longer. Best photo ever. #oscars
3:06 AM · Mar 3, 2014

(When) is there copyright in a selfie?



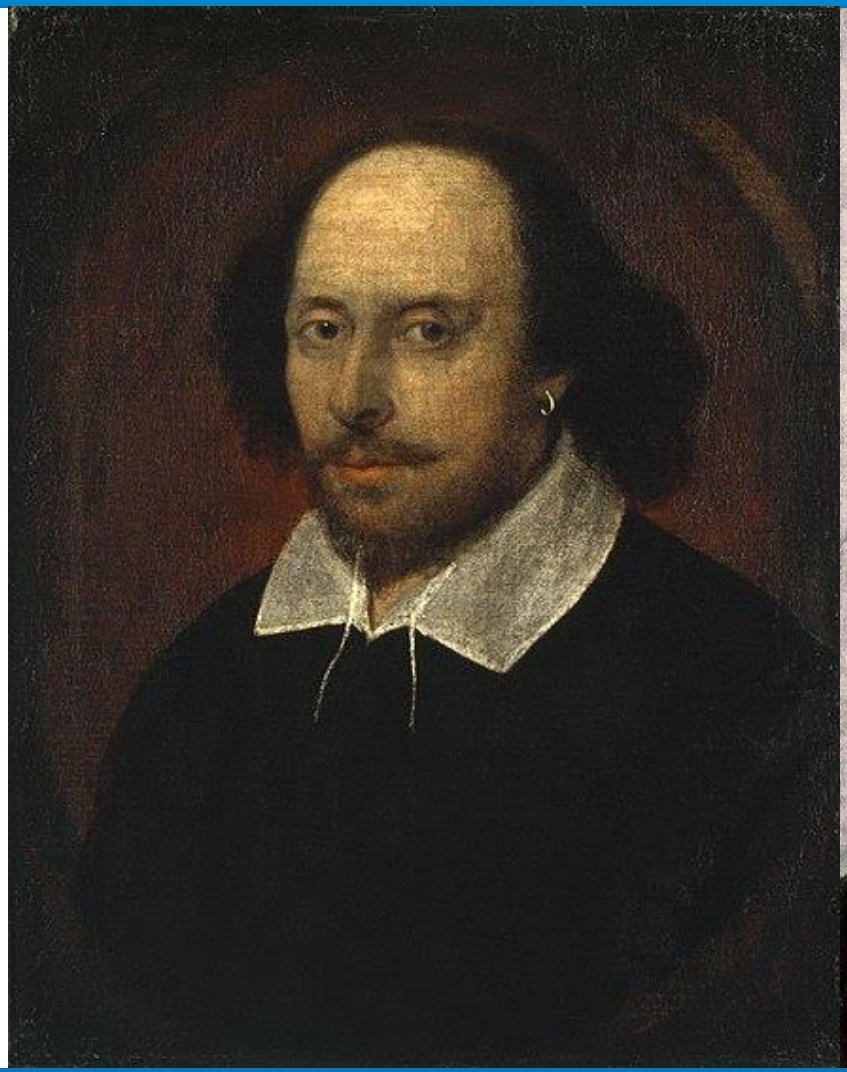
Is copyright in the Dolby Theatre, Samsung, Ellen, Bradley, ***or anybody***?

Rights holders



Trinity College Dublin, The University of Dublin; image: https://commons.wikimedia.org/wiki/File:La_Boheme_Act1_by_Gray.jpg

Author





Trinity College Dublin, The University of Dublin; image: https://en.wikipedia.org/wiki/William_Shakespeare
https://en.wikipedia.org/wiki/James_Joyce

Class participation



Pop Quiz



Does the monkey or the photographer have copyright in the monkey selfie?





2011





Does Naruto or Slater ***or anybody*** have copyright in the monkey selfie?

Naruto [PETA] v Slater

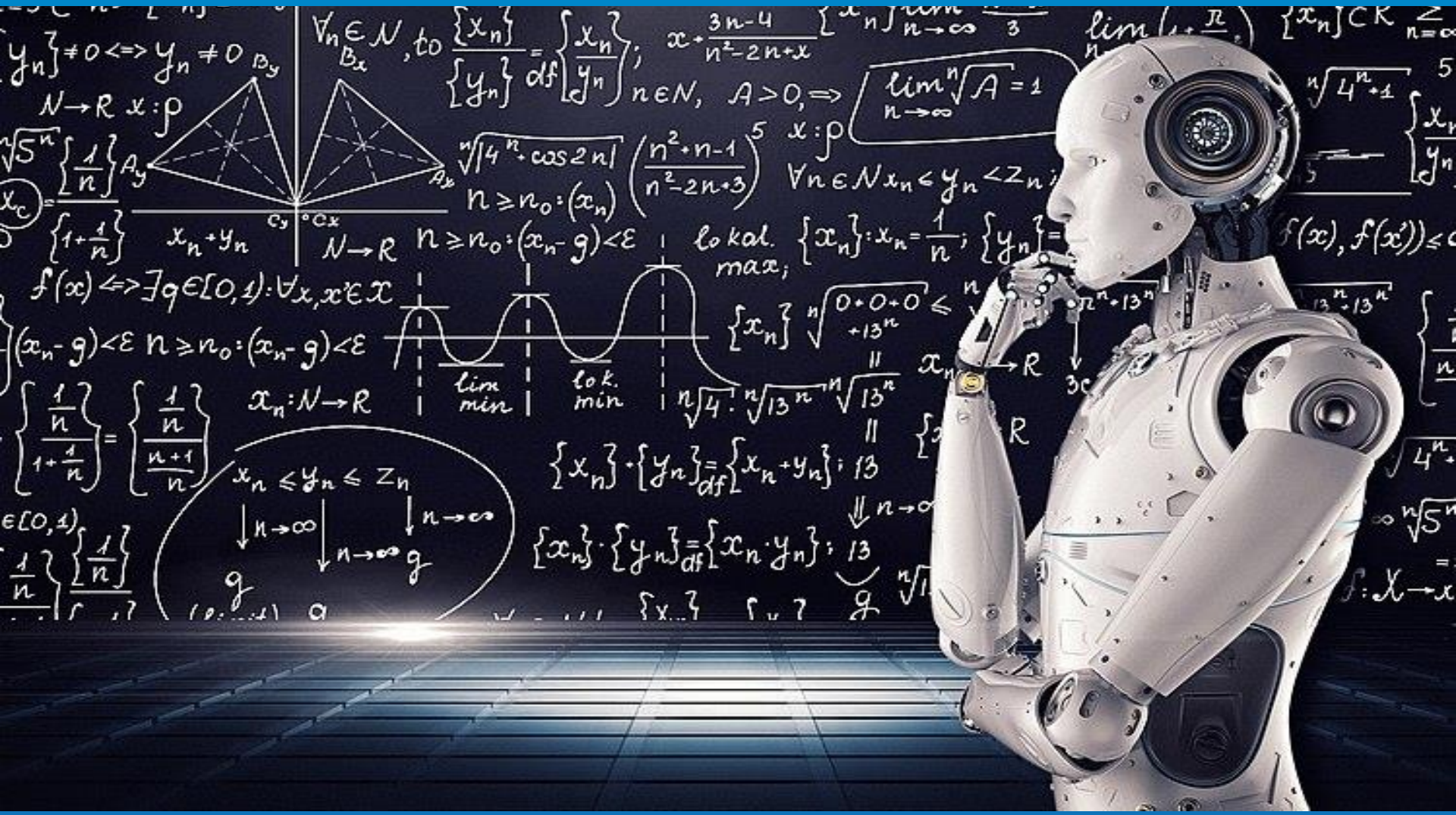
(No 3:2015cv04324; ND Cal, 2016 *aff'd* 888 F3d 418 (9th Cir, 2018))





Naruto not a person, so can't have copyright in the monkey selfie

In the case of AI, who is the **author**, and where is the **intellectual** creation?



Trinity College Dublin, The University of Dublin; image: https://commons.wikimedia.org/wiki/File:Artificial_Intelligence_%26_AI_%26_Machine_Learning_-_30212411048.jpg

A Recent Entrance to Paradise (2012) by [Stephen Thaler and/or] Creativity Machine



A Recent Entrance to Paradise (2012) by [Stephen Thaler and/or] Creativity Machine

Stephen Thaler



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1843magazine

The inventor who fell in love with his AI

≡ WIRED SECURITY POLITICS GEAR THE BIG STORY MORE SIGN IN SUBSCRIBE

WILL BEDINGFIELD BUSINESS AUG 31, 2023 7:00 AM

The Inventor Behind a Rush of AI Copyright Suits Is Trying to Show His Bot Is Sentient

Stephen Thaler's series of high-profile copyright cases has made headlines worldwide. He's done it to demonstrate his AI is capable of independent thought.

Thaler v Perlmutter

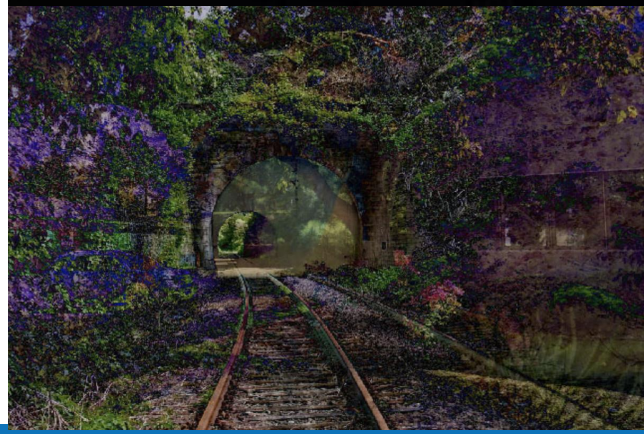
(No 1:2022cv01564; DDC (Howell J) 18 August 2023)

Courts have uniformly declined to recognize copyright in works created absent any human involvement, even when, for example, the claimed author was divine.

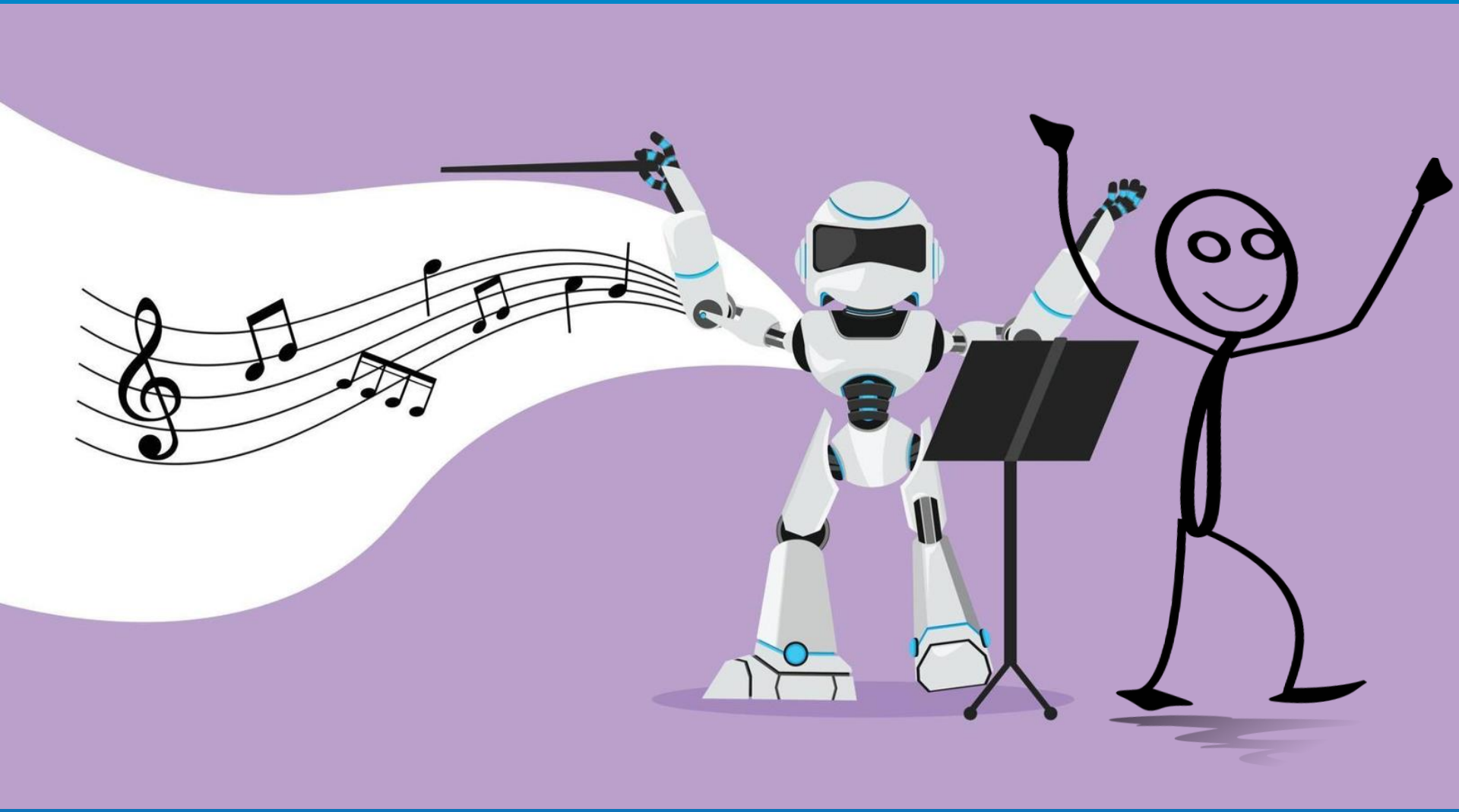
This case presents only the question of whether a work generated autonomously by a computer system is eligible for copyright. In the absence of any human involvement in the creation of the work, the clear and straightforward answer is the one given by the Register: No.



Howell J



There must be a human in the loop



Théâtre D'opéra Spatial (2022) by Jason Michael Allen and Midjourney

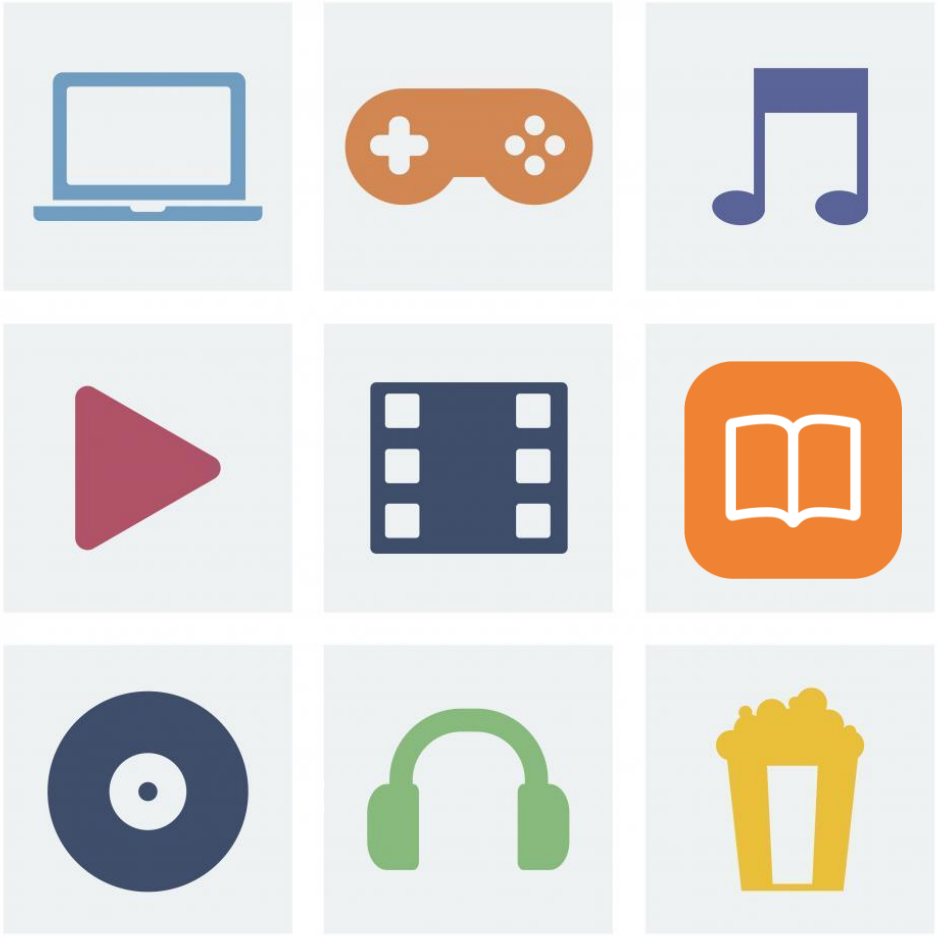




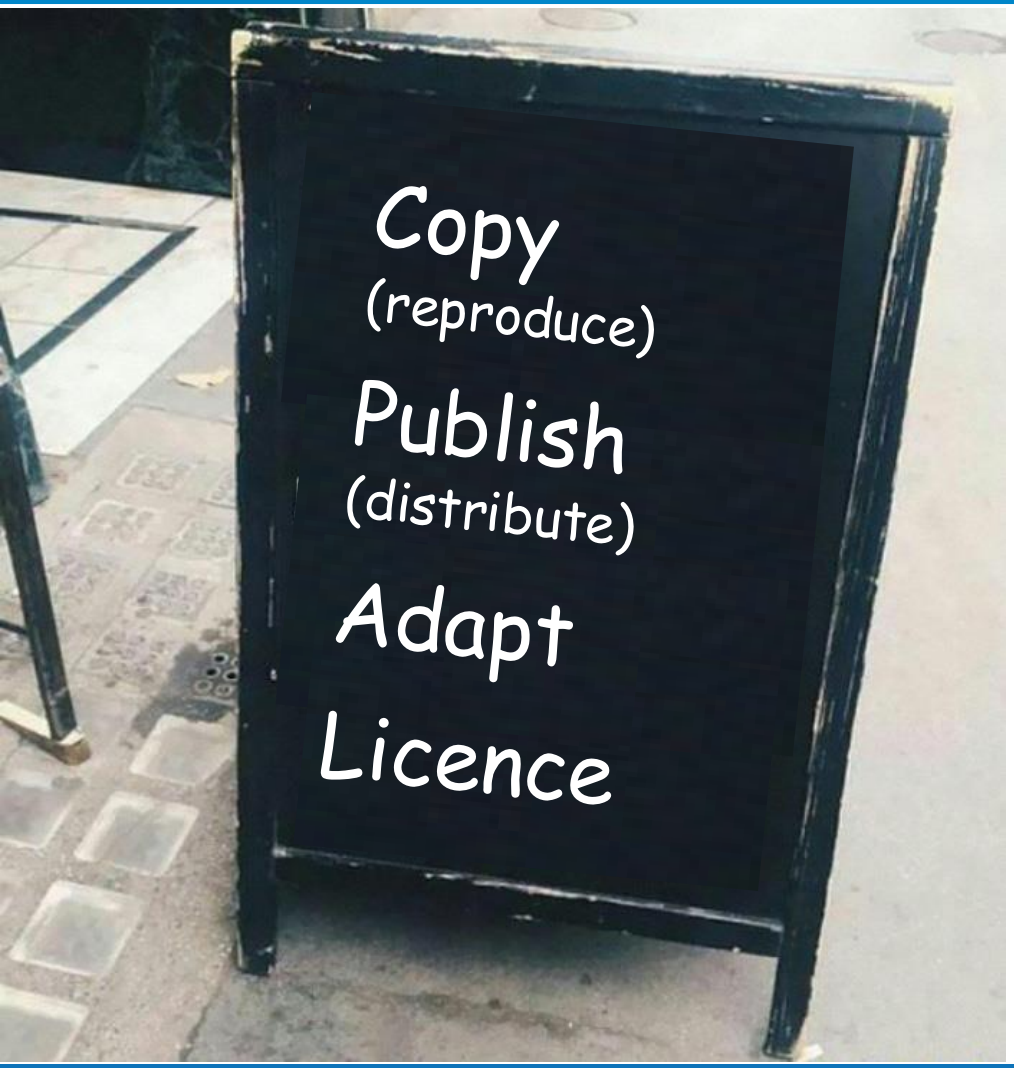
Too much Midjourney; not enough Allen; no CO registration; appeal

Rights holders

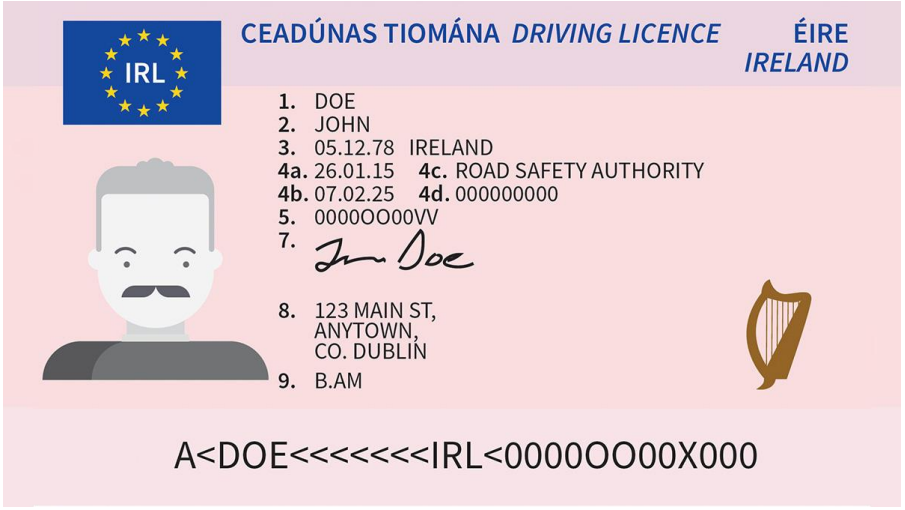




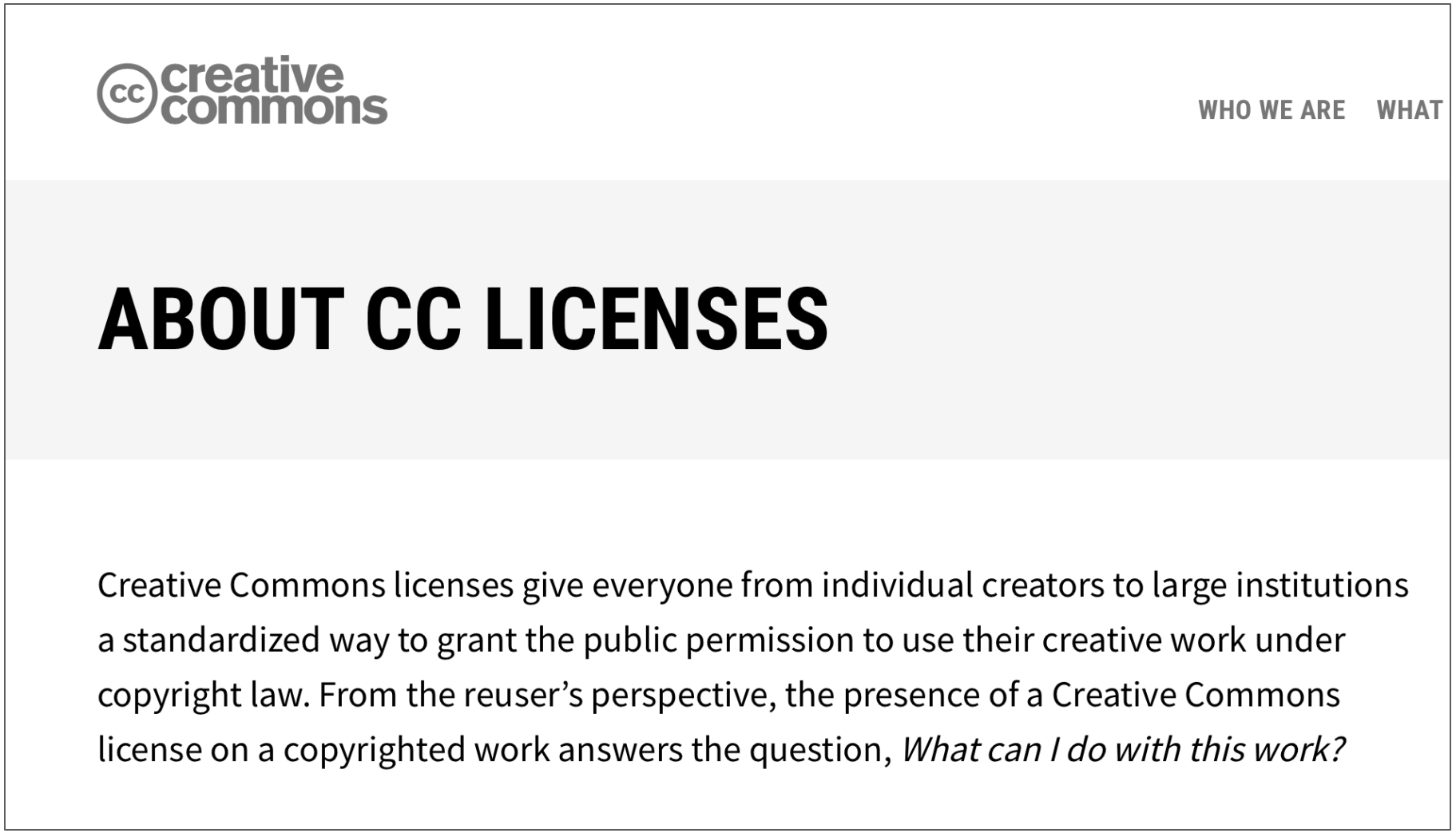
Rights holders' copyright rights



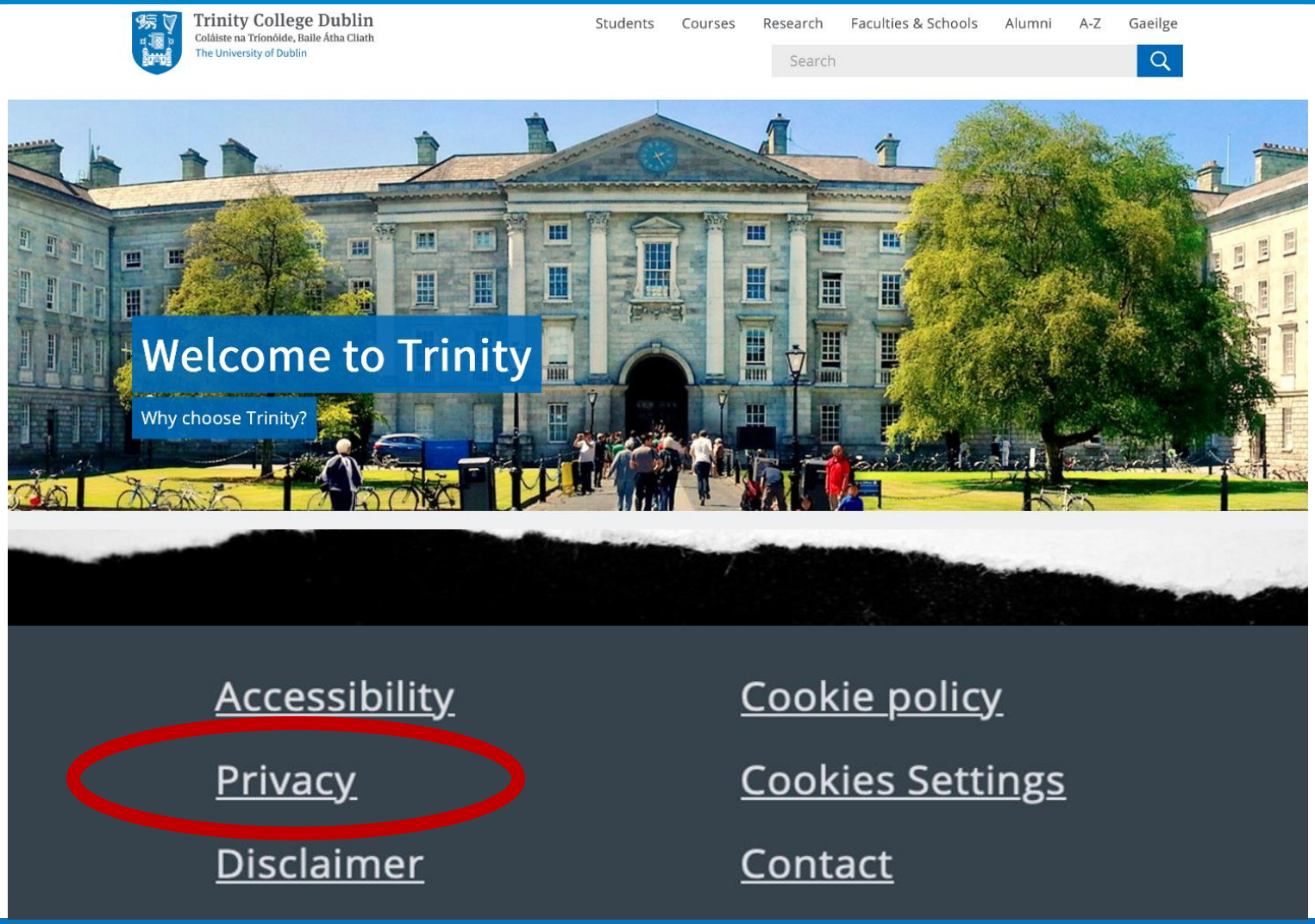
What's the most important of these rights in practice?



Rights holders' copyright rights

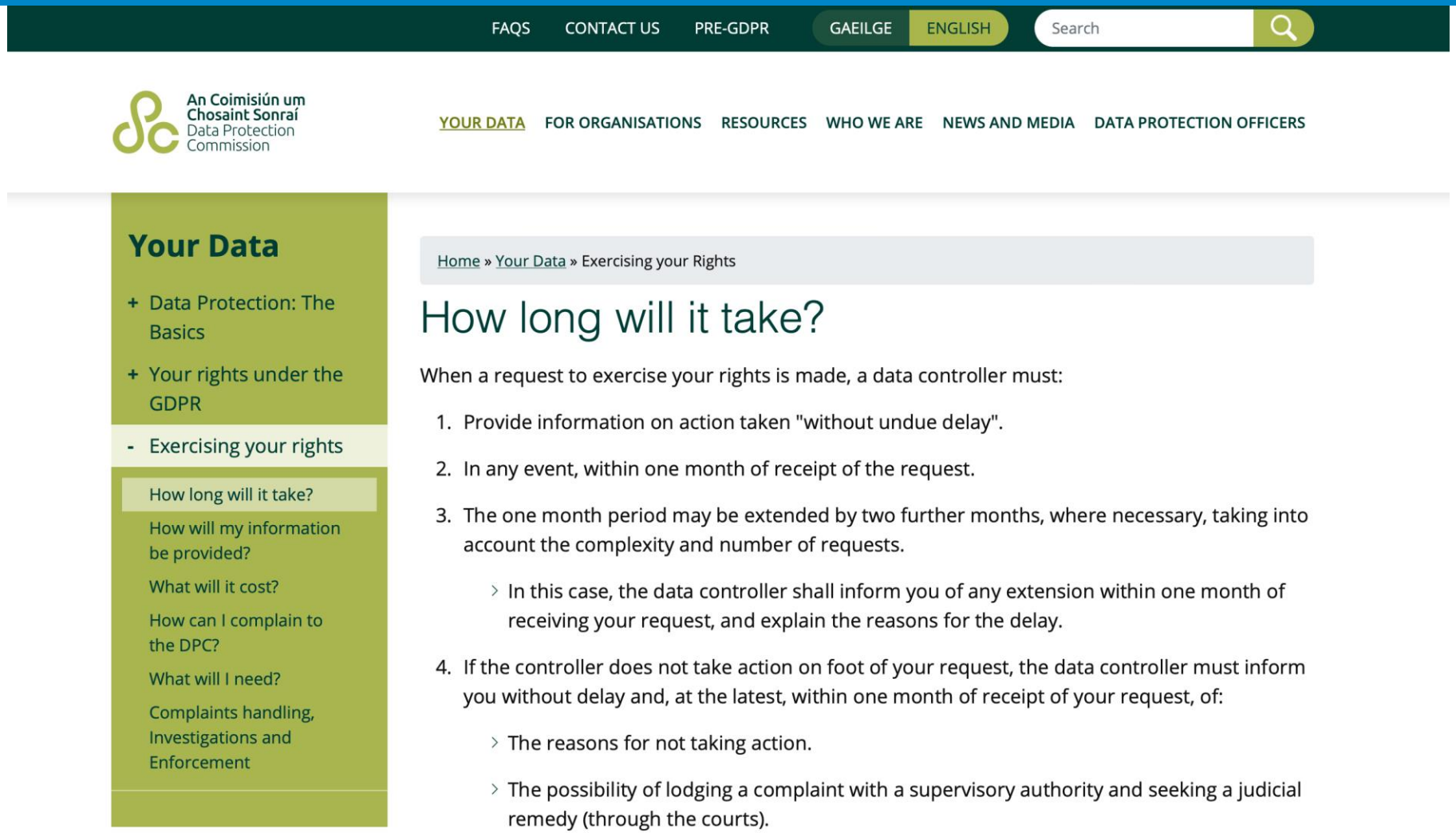


GDPR Data Subject Rights



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NEWS AND MEDIA
DATA PROTECTION OFFICERS
Your Data
+ Data Protection: The Basics
+ Your rights under the GDPR
- Exercising your rights
How long will it take?
How will my information be provided?
What will it cost?
How can I complain to the DPC?
What will I need?
Complaints handling, Investigations and Enforcement
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› The reasons for not taking action.
› The possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy (through the courts).

Instructions

Reflective essay; **due 5pm (Irish Time) Tue 12 Nov 2024**; via Blackboard.

If you are conducting a **SAR** or **RTBF** request, please explain things like:

- why you chose the service to which you made your request;
- how you went about it; and
- how, if at all, they responded.

If you are engaging with a **privacy policy** or **open source copyright licence**, please explain things like

- why you chose the policy or licence in question;
- how you went about assessing it; and
- whether you felt it was accessible and transparent and successful.

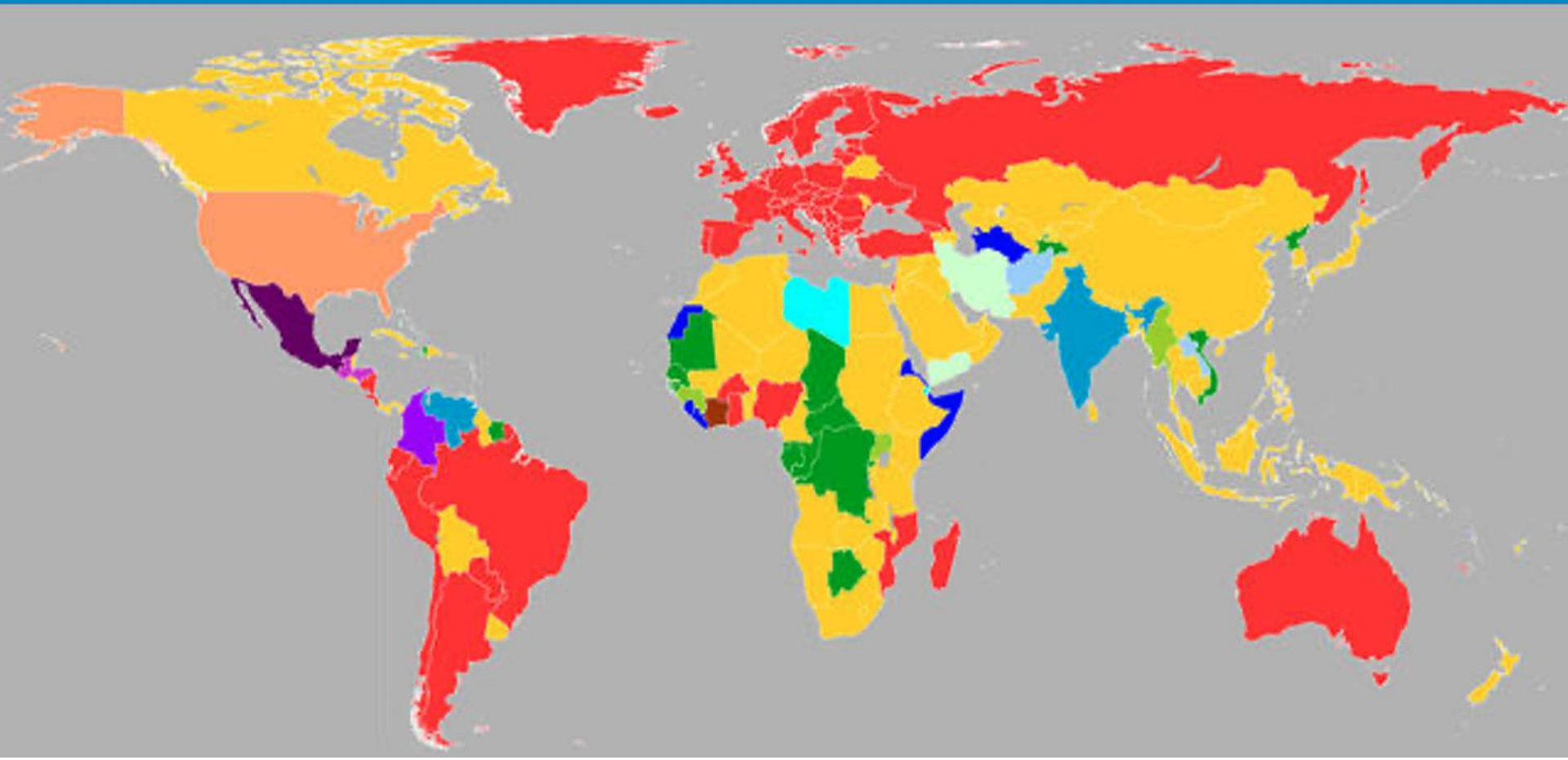
Copyright term



Term

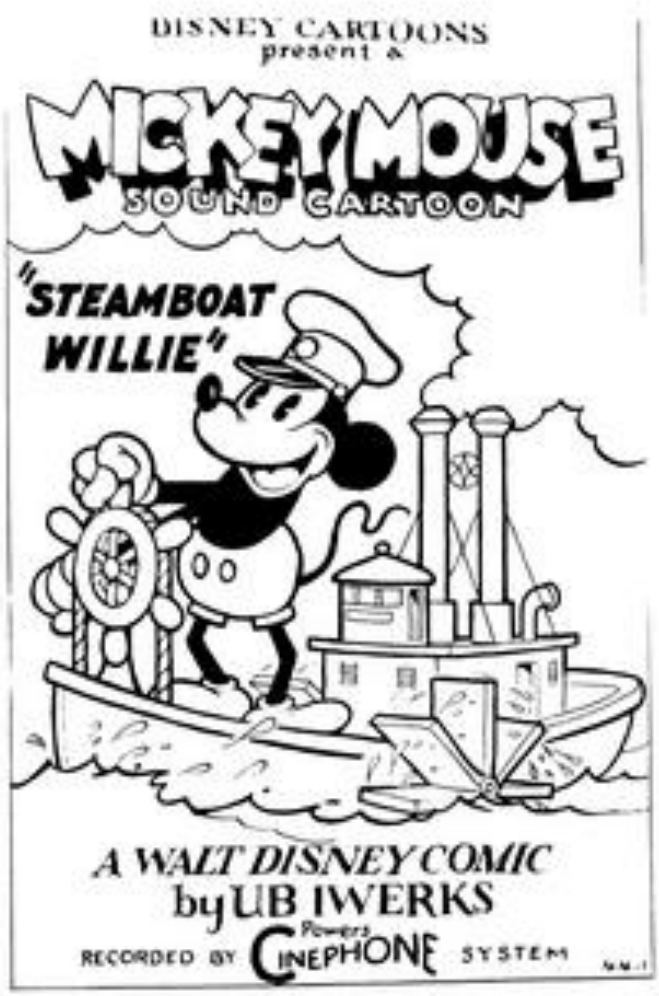

KIT CONNOR
RACHEL ZEGLER
ROMEO + JULIET
music by
movement by
directed by
©1597 written by W. SHAKESPEARE

Copyright term



Life + 100 **Life + ≥95** **Life + 70** **Life + 50**

Out of copyright / not in copyright

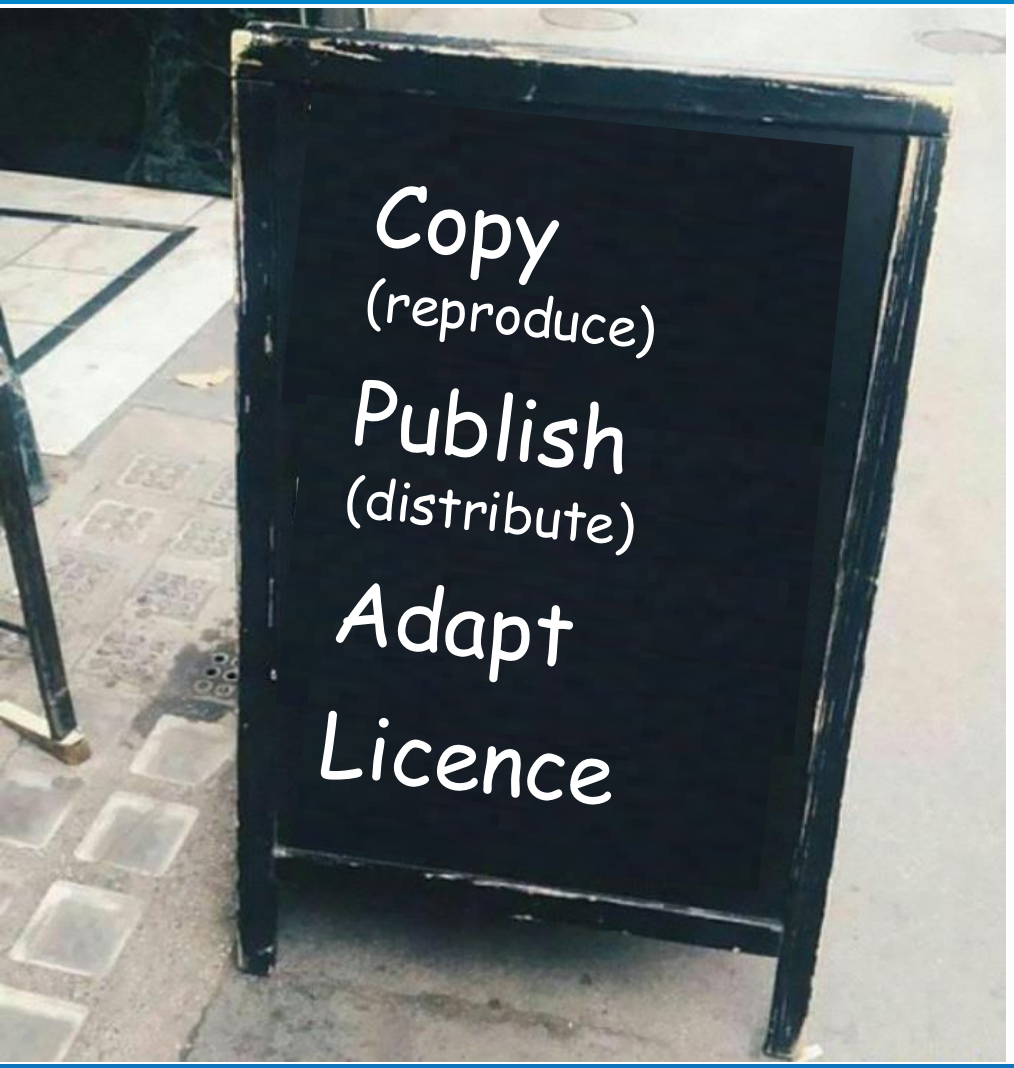




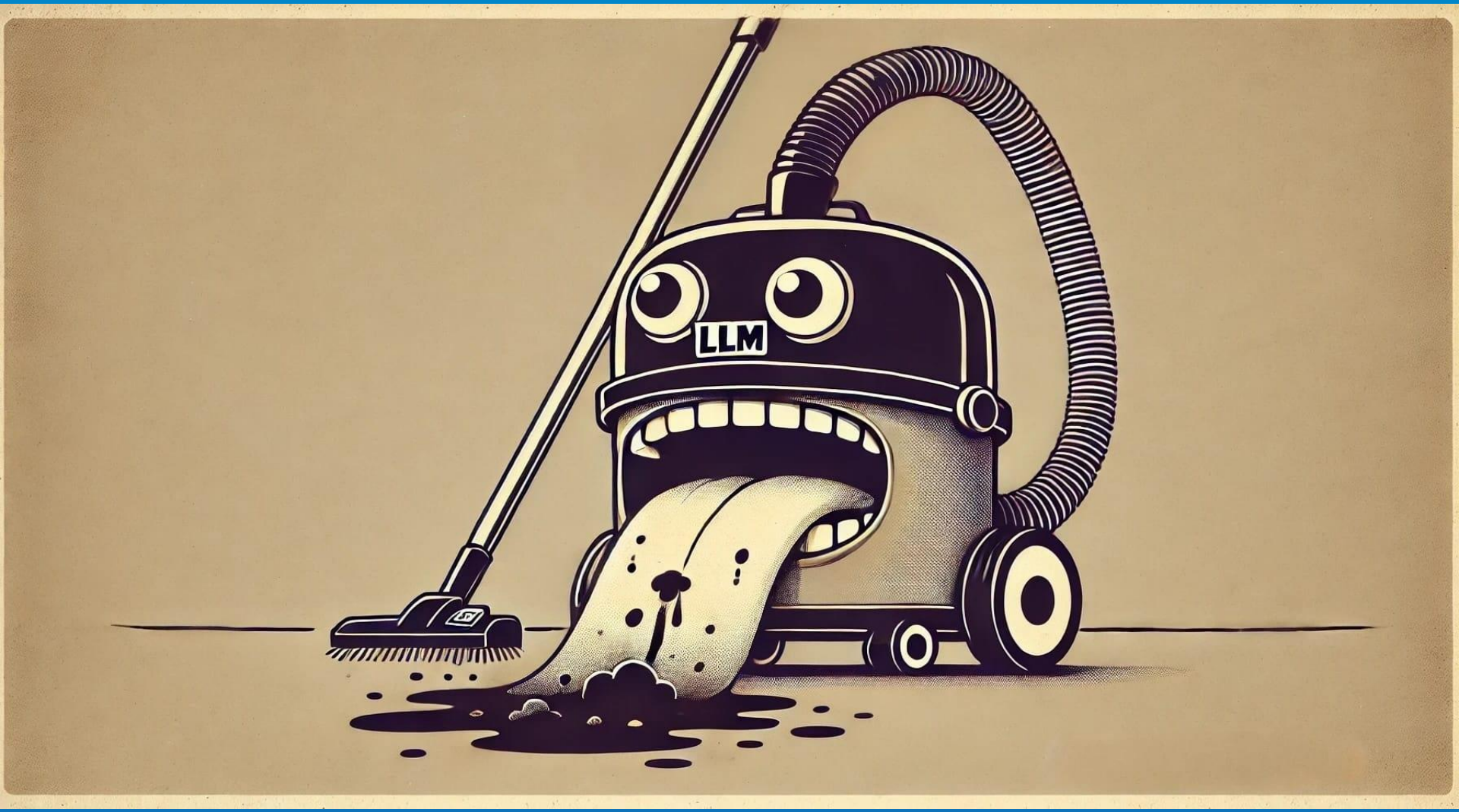




Infringement



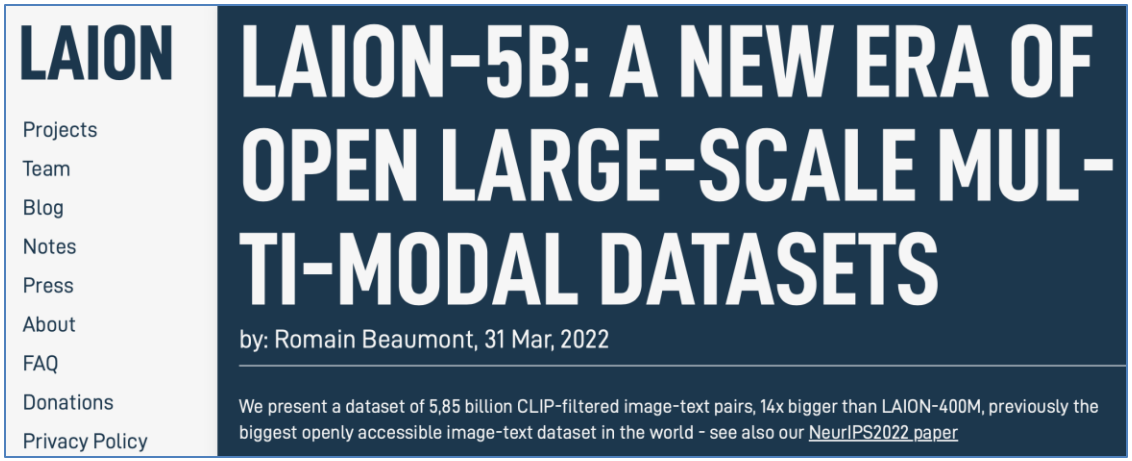
AI & Infringement – Input Infringement



LAION ev v Kneschke

(Regional Court, Hamburg, 27 September 2024)







Trinity College Dublin, The University of Dublin; image: https://www.alltageinesfotoproduzenten.de/ueber-mich/ & https://laion.ai/blog/laion-5b/ & https://laion.ai

AI & Infringement – Output Infringement



Shanghai CLA Co Ltd v A Yue

(Guangzhou Internet Court; 8 February 2024)

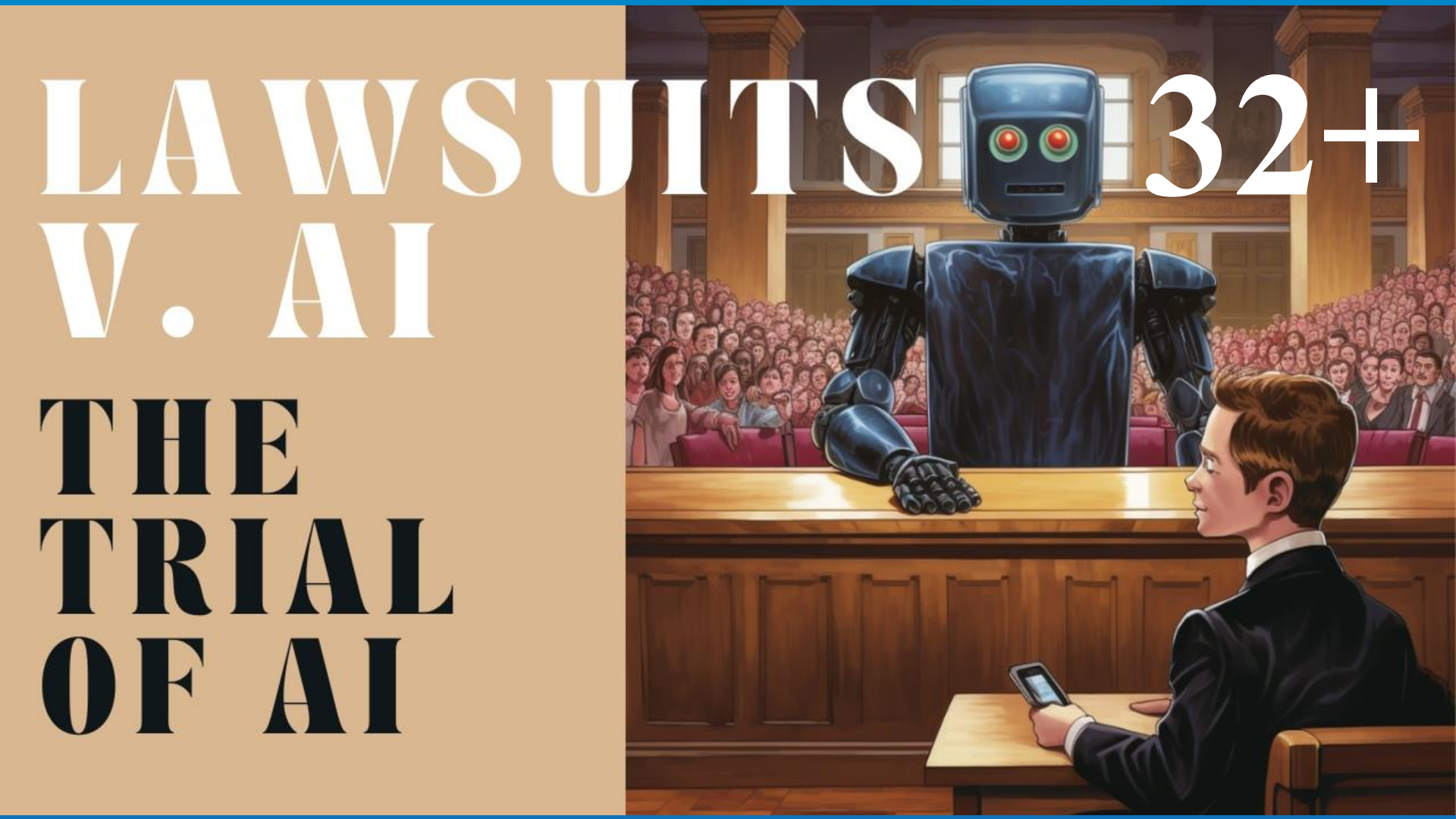


Ultraman

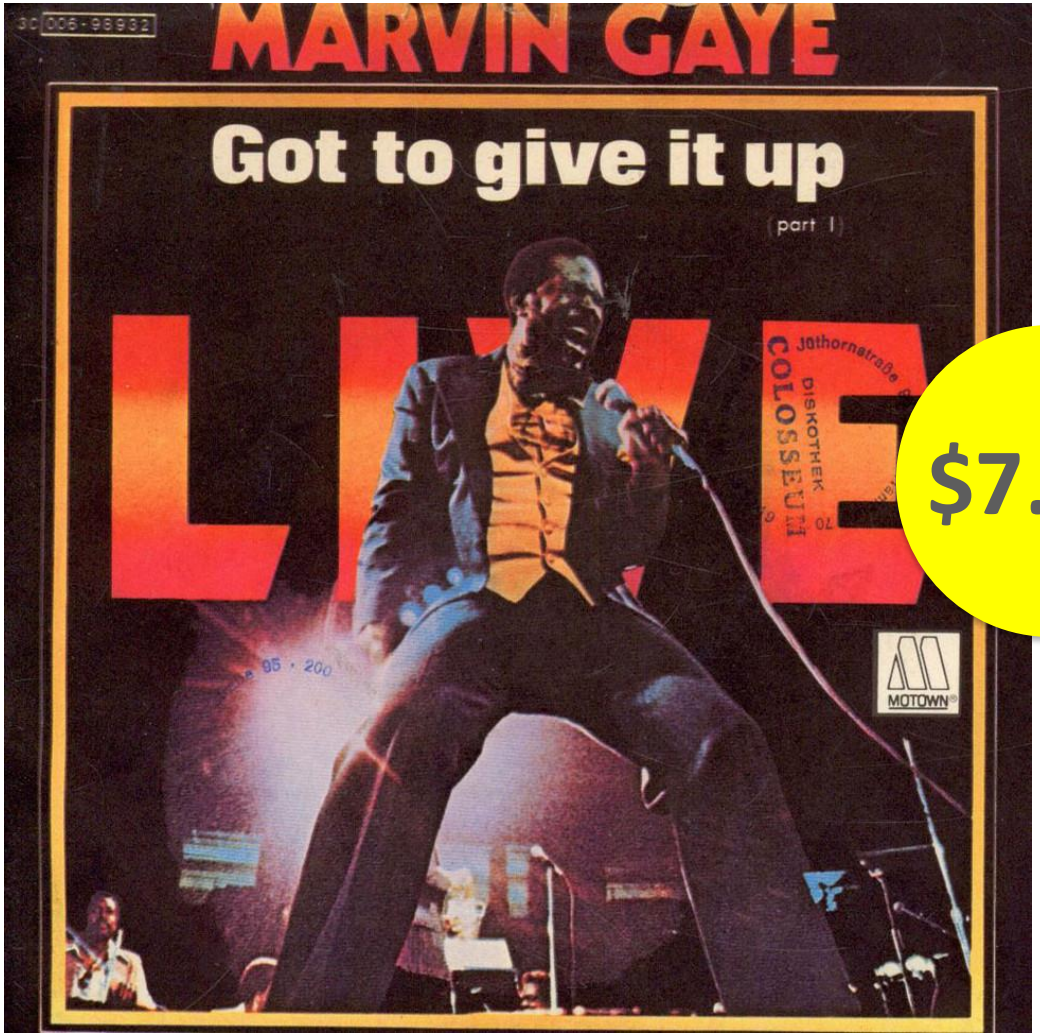


Infringing AI-generated images

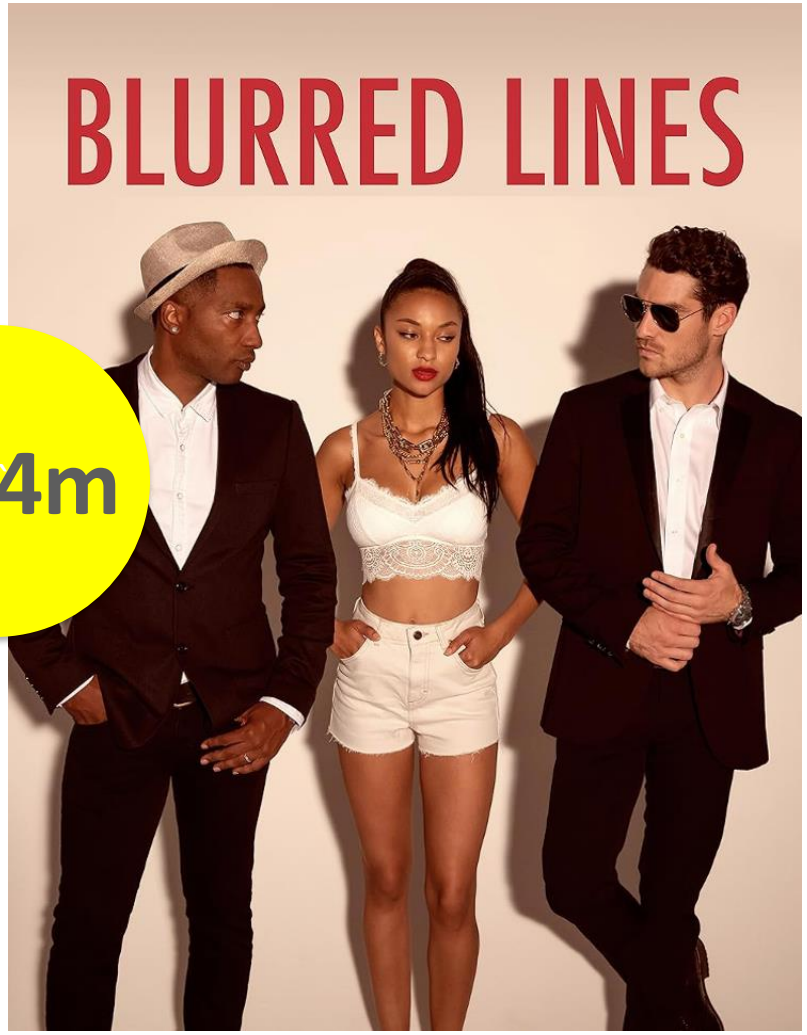
Litigation



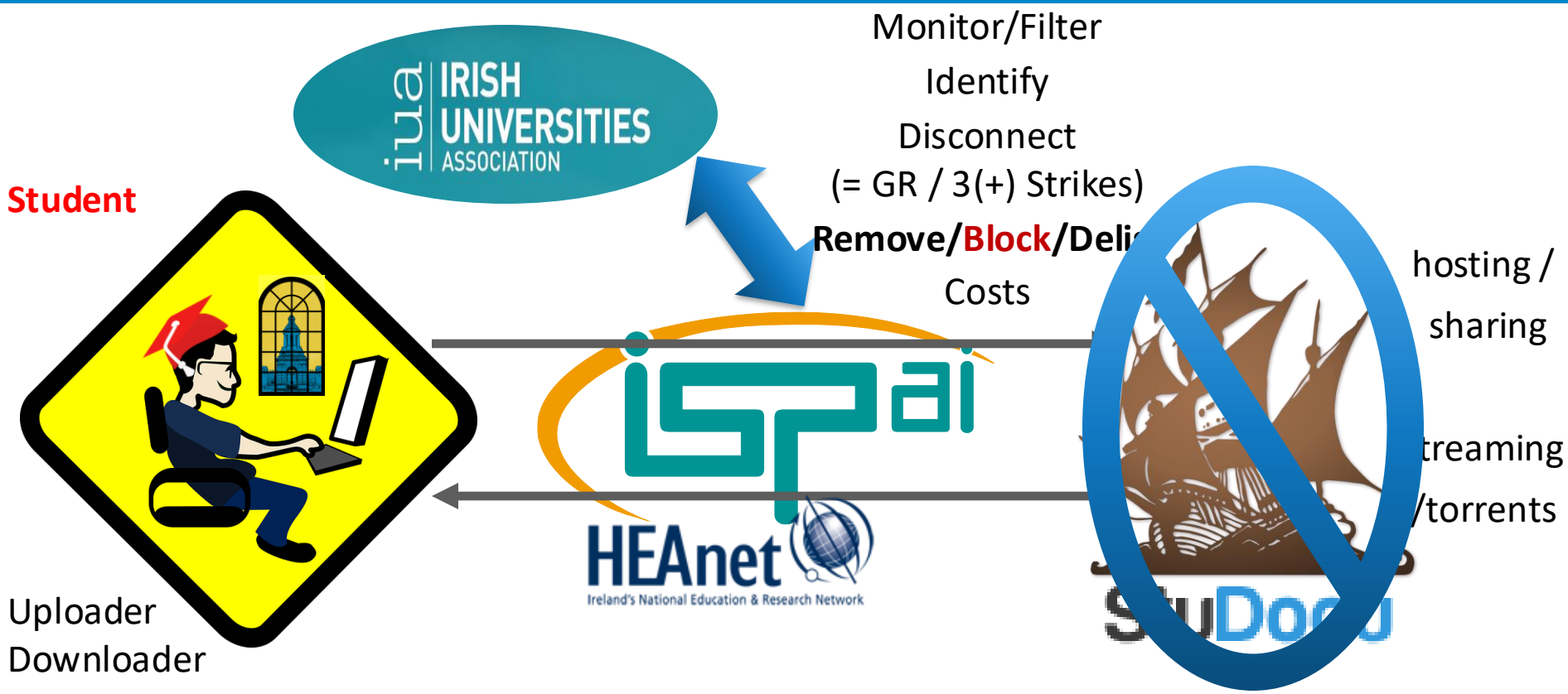
Remedies: damages



$7.4m



Remedies - injunctions



Censorship


CELEBRITY
CONSUME!
SENSATIONALISM
SCANDAL!
SEX TAPES!
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Freedom of Expression



Trinity College Dublin, The University of Dublin; image: https://commons.wikimedia.org/wiki/File:Constitution_of_Ireland,_Bunreacht_na_hEireann,_1937,_government_of_Ireland.jpg

Freedom of Expression: Article 40(6)

1° The State guarantees liberty for the exercise of the following rights,

(i) The right of the citizens to express freely their convictions and opinions.

Freedom of Expression: Article 40(6)

1° The State guarantees liberty for the exercise of the following rights, subject to public order and morality: –

(i) The right of the citizens to express freely their convictions and opinions.

Freedom of Expression: Article 40(6)

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The publication or utterance of blasphemous, seditious or indecent matter is an offence which shall be punishable in accordance with law.

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Freedom of Expression: Article 40(6)

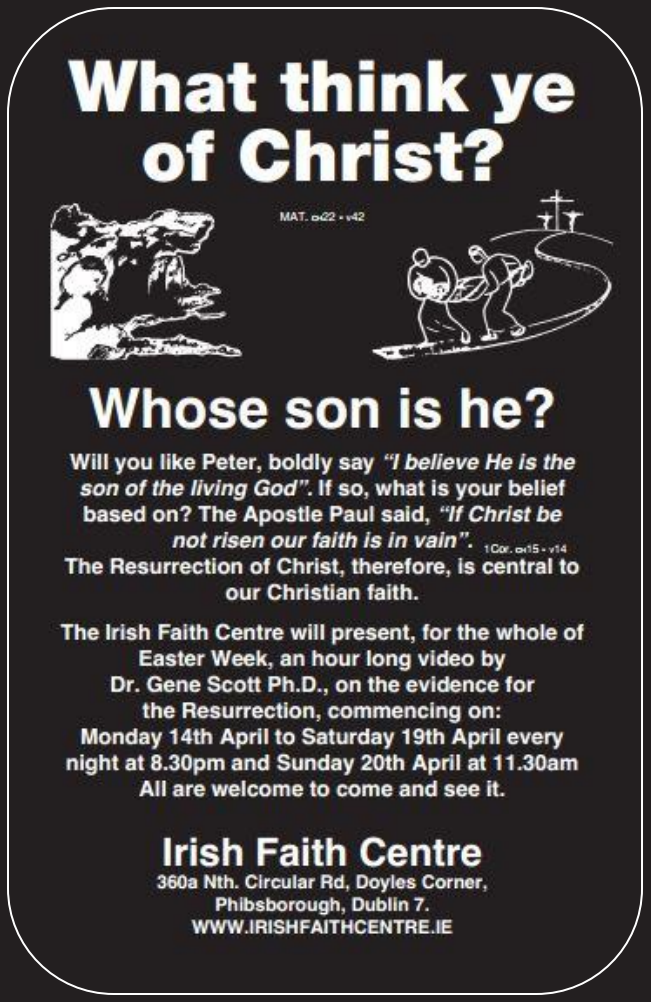
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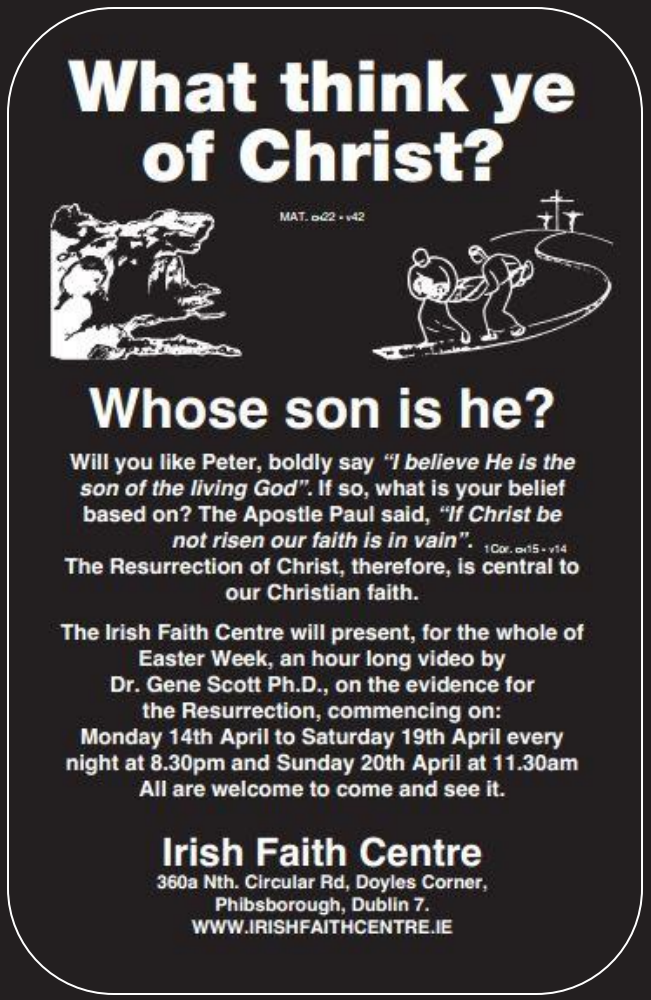
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The publication or utterance of seditious or indecent matter is an offence which shall be punishable in accordance with law.

Murphy v IRTC
[1991] 1 IR 120, [1998] 2 ILRM 360

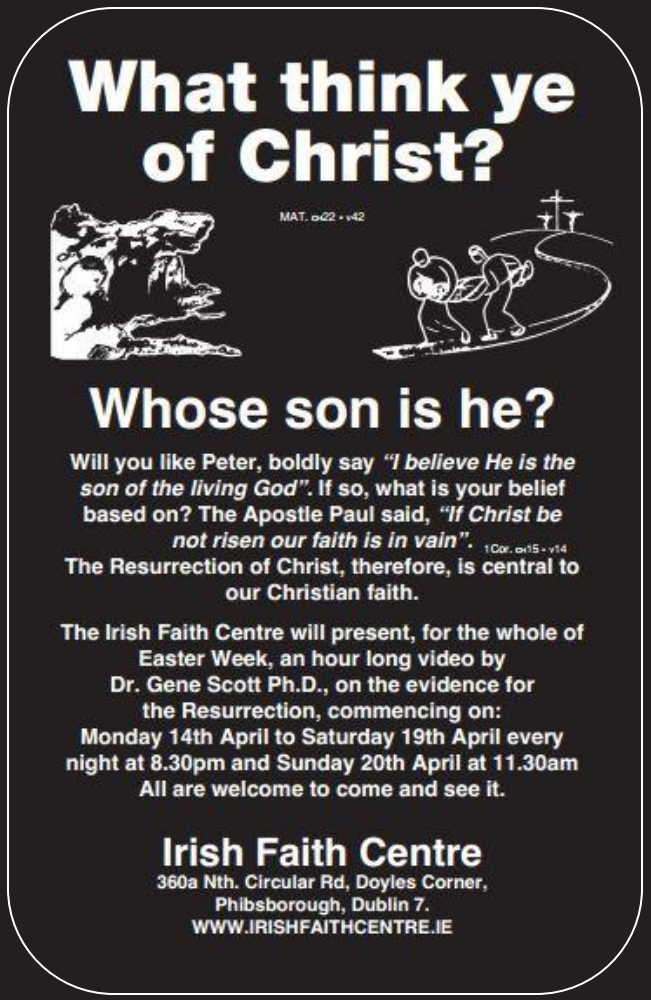


Murphy v IRTC
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Restriction

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[1991] 1 IR 120, [1998] 2 ILRM 360



Restriction

Right

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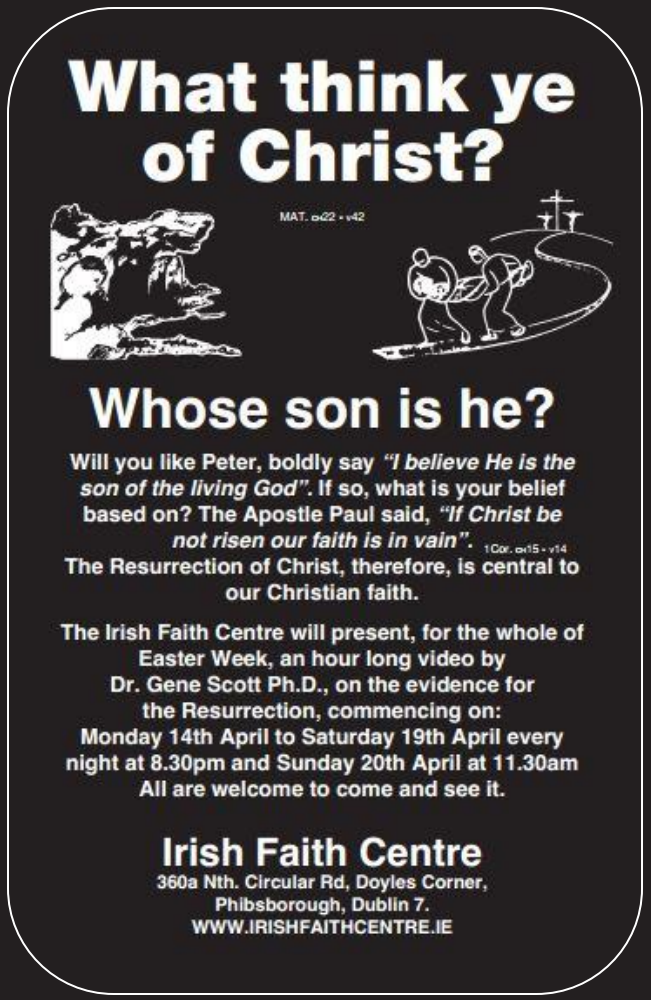
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Common Good

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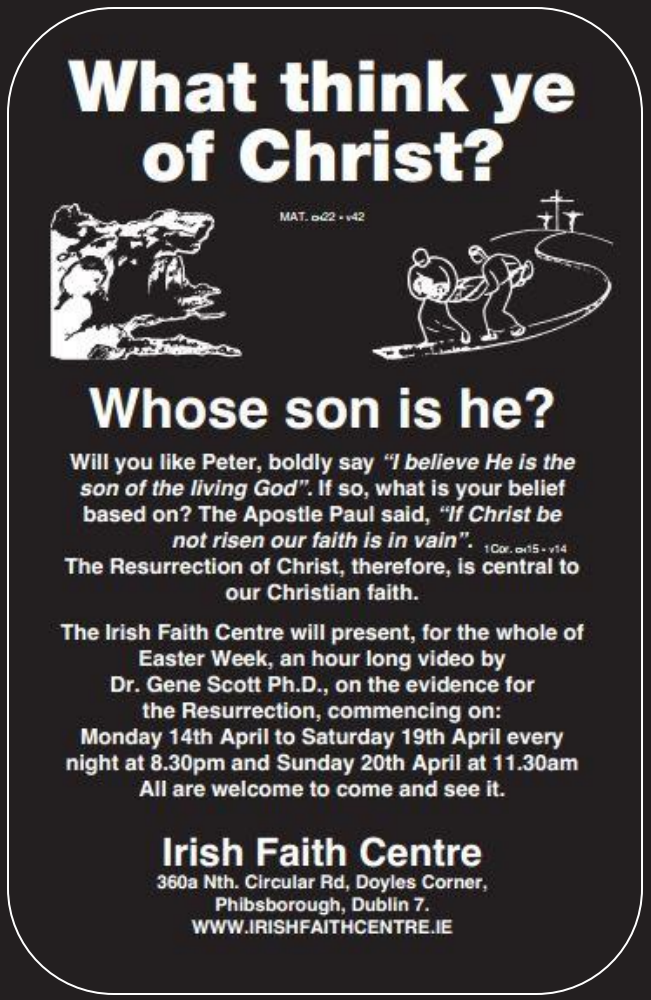
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Common Good etc etc

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Restriction

Right

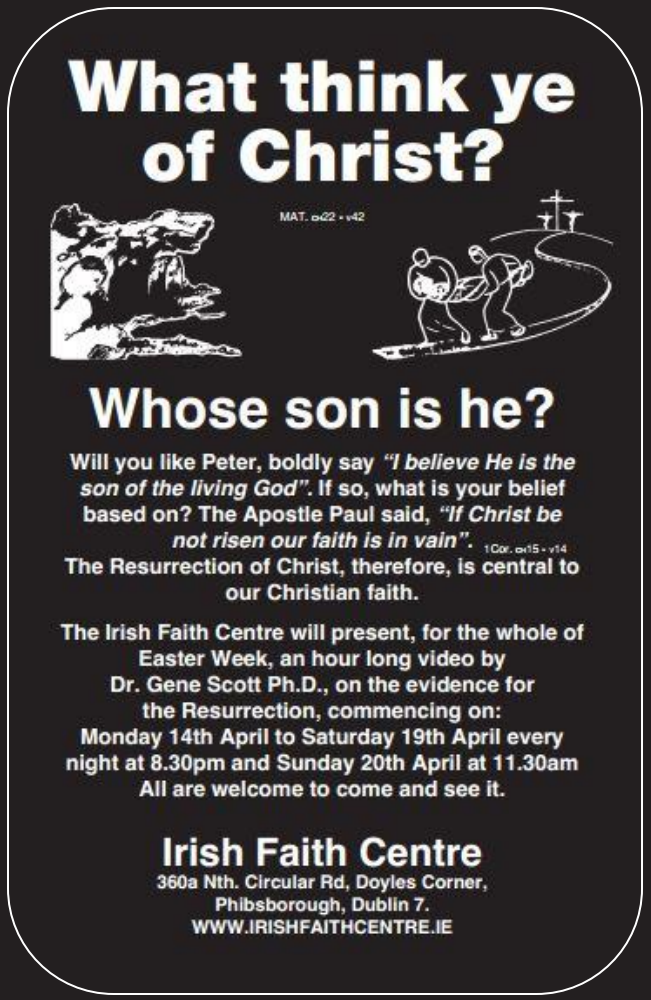
Reason

Review

Review
Proportionality



Murphy v IRTC
[1991] 1 IR 120, [1998] 2 ILRM 360



4 Rs

Restriction

Right

Reason

Review

What is this?



Trinity College Dublin, The University of Dublin; image: https://hamiltonmusical.fandom.com/wiki/What%27d_I_Miss%3F/

What I’d miss?



Trinity College Dublin, The University of Dublin; image: https://hamiltonmusical.fandom.com/wiki/What%27d_I_Miss%3F/

Any questions?



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Thank you



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